

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	27-07-2026 19:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	27-07-2026 19:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	90 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Finance
विभाग का नाम/Department Name	Department Of Financial Services
संगठन का नाम/Organisation Name	Union Bank Of India (ubi)
कार्यालय का नाम/Office Name	Central Office Dept Of Information Technology
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :hod1.ubn.mh@gembuyer.in Buyer Email id: subhkoley@unionbankofindia.bank.in
वस्तु श्रेणी /Item Category	Security Manpower Service (Version 2.0) - Hotel, Banks; Unarmed Security Guard
अनुबंध अवधि /Contract Period	1 Year(s)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	100 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	5 Year (s)
इसी तरह की सेवाओं का पिछला आवश्यक अनुभव है/Past Experience of Similar Services required	Yes
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / Estimated Bid Value in INR (Inclusive of all taxes)	2700000
Payment Timelines	Payments shall be made to the Seller within 10 days of issue of service delivery acceptance certificate (SDAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मूल्य दर्शाने वाला वित्तीय दस्तावेज ब्रेकअप आवश्यक है / Financial Document Indicating Price Breakup Required	Yes
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	Bank of India
ईएमडी राशि/EMD Amount	80000

ईपीबीजी विवरण /ePBG Detail

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आवश्यकता/Required	No
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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने है। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

Sr Manager

CENTRAL OFFICE DEPT OF INFORMATION TECHNOLOGY, Department of Financial Services, Union Bank of India (UBI), Ministry of Finance
(Subhabrata Koley)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.

2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
4. Years of Past Experience required: The bidder must have experience for number of years as indicated above in bid document (ending month of March prior to the bid opening) of providing similar type of services to any Central / State Govt Organization / PSU. Copies of relevant contracts / orders to be uploaded along with bid in support of having provided services during each of the Financial year.
5. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
6. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.
7. Past Experience of Similar Services: The bidder must have successfully executed/completed similar Services over the last three years i.e. the current financial year and the last three financial years(ending month of March prior to the bid opening): -
 1. Three similar completed services costing not less than the amount equal to 40% (forty percent) of the estimated cost; or
 2. Two similar completed services costing not less than the amount equal to 50% (fifty percent) of the estimated cost; or
 3. One similar completed service costing not less than the amount equal to 80% (eighty percent) of the estimated cost.

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

The Bidder should have executed at least X No. projects with contract value not less than (Rs) yy for eachcontract of providing manpower services to Central/ State Government Departments/ Public SectorUndertakings/ Autonomous Bodies in last N financial years:3 IN 5 YEAR

The Bidder should have executed at least X No. projects with supply of xx..no. of manpower in eachcontract of providing manpower services to Central/ State Government Departments/ Public SectorUndertakings/ Autonomous Bodies in last N financial years:25 IN 3 YEAR

Additional Conditions specific to this bid:Un armed Guards

Buyer to upload Gazette notification for the breakup of ESI/EPF/ELDI etc if required:[1783339837.pdf](#)

This Bid is based on Least Cost Method Based Evaluation (LCS). The technical qualification parameters are:-

Parameter Name	Max Marks	Min Marks	Evaluation Document	Seller Document Required
LCS FOR UNARMED GUARD	100	60	View file	Yes

Total Minimum Passing Technical Marks: 60

Security Manpower Service (Version 2.0) - Hotel, Banks; Unarmed Security Guard (8)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Type of Establishment / Area	Hotel, Banks
Category of Profile	Unarmed Security Guard
Category of Skills	Skilled
Gender	Male
Duty Hours in a day	8
Qualification	Secondary School
Ex Servicemen	Optional
Age Limit	Up to 55 years
Years of Experience	0 - 3 years
Additional Requirements for the Security Personnel	Driver's License
Is Geographical presence of the Service Provider registered office is required in the consignee's State	Yes
Name of states/ UT for geographical presence is required	Goa
एडऑन /Addon(s)	

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer	No
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अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Number of resources to be hired	अतिरिक्त आवश्यकता /Additional Requirement
1	Subhabrata Koley	403001,Union Bank of India Regional Office 2nd Floor, LIC Building Patto Panaji, Goa	8	• Tenure/ Duration of Employment (in months) : 12 • Basic Pay (Minimum daily wage) : 918 • Provident Fund (INR per day) : 60 • EDLI (INR per day) : 2.5 • ESI (INR per day) : 0 • EPF Admin charge (INR per day) : 2.5 • Bonus (INR per day) : 0 • Optional Allowance 1 (in Rupees) : 0 • Optional Allowance 2 (in Rupees) : 0 • Optional Allowance 3 (in Rupees) : 0 • Number of working days in a month : 30

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE 25% : The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration.

For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 25 percent with the consent of the service provider

2. Forms of EMD and PBG

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

UNION BANK OF INDIA
payable at
GOA

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

3. Forms of EMD and PBG

Bidders can also submit the EMD with Fixed Deposit Receipt made out or pledged in the name of A/C

UNION BANK OF INDIA

. The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of

the pledgee. For release of EMD, the FDR will be released in the favour of the bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Bidder has to upload scanned copy/ proof of the FDR along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date/ Bid Opening date

4. **Forms of EMD and PBG**

Bidders can also submit the EMD with Banker's Cheque in favour of

UNION BANK OF INDIA
payable at
GOA

Bidder has to upload scanned copy / proof of the BC along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

5. **Payment**

PAYMENT OF SALARIES AND WAGES: Service Provider is required to pay Salaries / wages of contracted staff deployed at buyer location first i.e. on their own and then claim payment from Buyer alongwith all statutory documents like, PF, ESIC etc. as well as the bank statement of payment done to staff.

6. **Buyer Added Bid Specific Scope Of Work(SOW)**

Text Clause(s)

Additional Termes & Conditions (ATC)

Providing Services of Outsourced Security Guards (Unarmed) in the Branches/Offices/ATMs of Union Bank of India under Regional Office, Goa

1. SCOPE OF THE WORK: -

Union Bank of India, a leading public sector bank, having its Central Office situated at Nariman Point, Mumbai (herein after referred as 'Bank' or 'the Bank') has its network of branches and ATMs situated across length and breadth of the country. The bank is having structured Administrative Offices situated in major cities across the country and are called Zonal / Regional offices, which provide administrative guidance and support to the branches in their jurisdiction.

Present Notice Inviting Tender is for estimated deployment of 08 Unarmed Security Guards in various branches in North & South districts under Regional Office, Goa. However, the exact number of guards may change as per bank guidelines, approval of competent authority and requirements of the bank.

2. Terms & Conditions:

2.1. Deployment of Unarmed Security Guards is to be completed within a period of 30 days commencing from the date of acceptance of the offer. If the PSA fails to deploy Security Guards within given time, the order shall be cancelled.

2.2. Formats of documents mentioned in this RFP are final and not open to any modification.

2.3. If Bank changes/modifies any guidelines regarding deployment of security guards in branches, such guidelines will prevail and supersede the terms of contract arising out of this RFP.

2.4. Bank reserves all rights to either reduce or increase the number of security guards to be deployed in bank/branches as per their requirements. The Bank reserves the right to alter the order/orders.

3. Earnest Money Deposit:

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3.1 The Service provider / Bidder shall furnish, as part of its bid, Earnest Money Deposit (EMD) as mentioned on GeM in the form of a Demand Draft in favor of Union Bank of India payable at Goa / through online mode or in form of Bank Guarantee (issued by any Bank other than Union Bank of India). Bank details for remitting by online mode is given here below. Hard copy of the payment proof (UTR No. etc) must be enclosed with technical bid. Bidders claiming exemption from submission of EMD must substantiate their eligibility for exemption with relevant documents. If submitted by way of BG, the same must be valid for 135 days from date of submission of technical bid. BG/DD wherever applicable, must reach to our office before closing date & time of tender submission.

Account Name	:	Inward RTGS
Bank Name	:	Union Bank of India
Account Number	:	561301980050000
IFSC code	:	UBIN0556131

3.2 The successful Bidders' EMD will be discharged upon the Bidders' signing the contract & furnishing the Performance Bank Guarantee. Unsuccessful Bidders will be intimated the reasons for their not being qualified through GeM and EMD deposited by them, if any, will be returned in due course.

3.3 The EMD may be forfeited:

- i) If a Bidder withdraws/modifies its bid during the period of bid validity; or in the case of a successful Bidder, if the Bidder fails:
 - a) To execute the contract within the stipulated time, or
 - b) To furnish Performance Bank Guarantee within the stipulated time.
- ii) At any stage of evaluation, if a bidder is found to have given false declaration / certification / information in Technical Bid, Bank may at its discretion forfeit EMD and reject the bid.

4. ELIGIBILITY CRITERIA FOR SERVICE PROVIDERS

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4.1 Service providers shall submit all relevant proof documents along with the tender. Bidders not conforming to any of the parameters as on last date for submission of bids will not qualify for short listing. Following is the list of eligibility criteria for vendors/security agencies: -

4.1.1 Service providers / Bidders should be a registered company / registered partnership firm / proprietary firm for providing security guards' services since last five years or more. (Proof document- valid Registration Certificate of RoC for Registered companies/registered partnership deed for partnership firm/registration certificate or any other document substantiating age of firm, for proprietary firm).

4.1.2 Service providers / Bidders should have obtained a license in accordance with section 4 & 7 of the Private Security Regulation Act 2005 in the state, where the act has been implemented (Proof documents- Valid PSARA License for t

he State of Goa). The license should be valid for the entire state. The license should remain valid through the period of contract. At any point of time, if the PSARA license remains invalid for more than 3 months, Bank reserves all rights to cancel the contract. Service providers / Bidders who do not fall under the ambit of PSARA License are required to submit necessary supporting document to prove that the Service providers / Bidders is Government agency/eligible for exemption as per official Government gazette/official document.

- 4.1.3 PSA / Bidders should have at least one of its own offices in the state of Goa. Such office must have a valid Registration under Shops & Establishments Act applicable in the State. (Proof document- valid Registration Certificate for the offices in the State of Goa.
- 4.1.4 Service providers / Bidders should have valid Registration with ESI Corporation under ESI Act and should have been allotted with a code number by the ESIC (Proof Document – valid Registration Certificate with Code number from ESIC and Sub code allotted in the State of Goa.
- 4.1.5 Service providers / Bidders should have a valid Registration with EPFO under EPF & Miscellaneous Provisions Act 1952 and should have been allotted Registration number (Proof document- valid Registration Certificate with Registration number of EPFO)
- 4.1.6 Service providers / Bidders should have Income Tax PAN and should be submitting IT returns for last three years (Proof documents – Copy of valid PAN Card and IT Return Acknowledgement copy for last three years).
- 4.1.7 Service providers / Bidders should have a Registration for GST and should have been allotted with Registration number (Proof document- Valid Registration Certificate with GSTIN).
- 4.1.8 Service providers / Bidders should have minimum five years' experience of providing Security Guard's services to Public/Private Sector banks / Central PSU / State PSU. (Proof documents- work orders from banks substantiating providing services since last five years). **Exemptions to eligible MSEs as per govt guidelines will be applicable on production of valid documents.**
- 4.1.9 Service providers / Bidders should have average annual financial turnover of Rs 26 Lakh during the last three years and should be in profit in the last three financial years (proof documents - Audited Balance sheet and P & L statement for each of the last three financial years.
- 4.1.10 Service providers / Bidders should have their own infrastructure for training

of their Security guards. [Otherwise, tie-up arrangement with PSARA registered training establishments, provided if, PSARA applicable in the State permits such tie-up arrangement for training] (Proof documents- Registration Certificate of training establishment under Shops and Establishments Act for own training facility/documents substantiating tie-up arrangement with PSARA registered training establishment).

- 4.1.11 Service providers / Bidders should have at least one office in the area under jurisdiction in the state of Goa. The office should be equipped with telephone & email facility and the office should be physically manned during the office hours on all working days. The office should be in existence before the date of publishing of this tender. (Proof Documents – Registration of the office under Shops & Establishment Act applicable in the State, latest telephone bill, muster roll/attendance record of the office staff).
- 4.1.12 Service providers / Bidders should have credible supervisory infrastructure and network in the state (Proof Documents – Muster Roll/Attendance record of supervisory staff with designation, placed with the offices in the State).
- 4.1.13 Service providers / Bidders shall not be owned or controlled by any director or officer/employee of Union Bank of India or their relatives having the same meaning as assigned under Section 6 of the Companies Act 1956 (Proof document- Self declaration by the Director/Partner/ proprietor substantiating the criteria).
- 4.1.14 Service providers / Bidders should be complying with Minimum Wages Act 1948 and amendments there to (Proof documents – Copies of Salary slips for the month of March 2026, April 2026 & May 2026 issued to Security Guards (Unarmed) deployed in area A, B & C of any principal employer).
- 4.1.15 Service providers / Bidders should be remitting EPF contributions on-line (Proof documents – Copies of Electronic Challan-Cum-Return (ECR) for the month of March 2026, April 2026 & May 2026 for same Security Guards (Unarmed) for whom salary slips are submitted as mentioned above).
- 4.1.16 Service providers / Bidders should be remitting ESI contributions on-line (Proof documents – Copies of electronic Contribution History Sheet (CHS) for the month of March 2026, April 2026 & May 2026 for same Security Guards (Unarmed) for whom salary slips are submitted as mentioned above).
- 4.1.17 Service providers / Bidders should be remitting net salary to security guards' Bank Account (Proof documents – Copy of security guards Bank Account passbook/statement indicating credit of the net salary for the months of March 2026, April 2026 & May 2026 for same Security Guards (Unarmed) for whom

m salary slips are submitted as mentioned above).

4.1.18 If the Director/Partner/Proprietor of the Service providers / Bidders is convicted by any Court/Competent authority OR facing criminal proceedings under the law of the land, Bank reserves all rights to reject offer from such Service providers / Bidders. Affidavit in this regard is to be submitted by the Director /Partner /Proprietor as per given format. The same should be signed by Director/ all Partners/ Proprietor only. Failure to submit the affidavit as per given format will disqualify the bid.

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5. QUALITATIVE REQUIREMENTS (QR) FOR UNARMED SECURITY GUARDS

The following guidelines shall be adhered to while outsourcing Security Guards (Unarmed) through the contracted Service providers / Bidders for Branches:

a. Security Guard (UnArmed) should preferably be an ex-serviceman / CAPF personnel. In case of normal Civilian Guard should be of sound health. Their medical fitness will be considered as per medical fitness certificate from Registered Medical Practitioners with qualification not less than M.B.B.S., and to be provided to bank at the time of deployment.

b. Age of the Security Guard (Unarmed) at the time of first deployment should not be above 55 years.

c. Security Guard (UnArmed) should have been released from his parent service in medical category SHAPE-I or equivalent and be medically fit in all respects at the time of deployment. Their medical fitness will be considered as per medical fitness certificate from Registered Medical Practitioners with qualification not less than M.B.B.S., and to be provided to bank at the time of deployment.

The Security Guard (Unarmed) should be mentally sound and possess good physique to perform all duties of Guard as listed in this document.

6. General Guidelines:

6.1 Security Guard deployed at ATMs and/or offices without arms. Security Guard (Unarmed) should perform their duty for eight hours per shift per location. Weekly off shall be provided after every six working days.

6.2 Security Guard (Unarmed) shall perform duty in proper uniform and should be in possession of photo-identity card provided to them by their employer i.e. the PSA.

6.3 The place of duty for the Security Guard (Unarmed) in the branch should be ge

nerally at the entrance of the Onsite/ Offsite ATM.

6.4 The duty of the Security Guard (Unarmed) is to keep a watch over persons visiting the ATM and against removal of bank's property by any unauthorized persons AND/OR to watch and guard the movement of cash from one place to another whether inside or outside the Bank.

7. **Character & Antecedent Verification**

Before deployment of Security Guard (Unarmed), the PSAs should arrange for verification of the antecedents of the guards by the police and such valid police verification certificate by the police should be submitted by the PSAs to the Bank before deployment of the guards.

8. Award of Contract:

The award of contract will be through GeM, however, successful bidder(s) is /are required to execute an Agreement, on a non-judicial stamp paper of applicable rate with Branch/office where security guards are deployed. The format for agreement is attached as Annexure I.

9. **Payments to the PSAs**

- Monthly payment to the PSAs will be made by the respective Branches/Offices where outsourced Security Guard (Unarmed) is deployed, adhering to the following:
 - a) PBG/ePBG should have been submitted to the RO or shall be made available on GeM after verification through NeSL and the Agreement executed with the branches.
 - b) Payment will be made to the PSA's Bank Account through online/NEFT/RTGS mode only as per approved rate on production of monthly bill every month.
 - c) The monthly bill should indicate monthly rate, number of Security Guard (Armed/Unarmed) deployed, total monthly charges and applicable GST separately and their Bank account & GST details. The bill should be submitted along with following documents: -
 - i) Monthly attendance record of guards deployed.
 - ii) Previous month's wage slip, ECR for EPF, CHS for ESI and guard's Bank Account statement/passbook copy indicating credit of net salary of previous month for the guards deployed.

The selected Service providers shall comply with all provisions of the Contract Labour (Employment & Regulation) Act and Rules made thereof as applicable to them. If it comes to notice of Bank that the Service providers is not complying with any of the Labour Laws, Banks reserves all rights to terminate the contract by giving 30 days' notice.

10. **Format for Price Bid**

Monthly Charges for providing One (01) Unarmed Security Guard

-

Sl	Payment Details	Monthly Charges in Rs / %	Security Guard without Arms
			Area B
1	Basic plus VDA	_____ Days	-
2	Employees Provident Fund (EPF)	-	-
3	Employees Deposit Linked Insurance (EDLI)		
4	Admn. Charges to PF and EDLI authority		
5	Employees State Insurance (ESI)		
6	Charges for Weekly Off	Four Days of (Basic +VDA+ EPF+EDLI+Adm.Chgs. to PF & EDLI +ESI)	
7	Any other Charges demanded by Bidder (Optional)	-	-
a	-	-	-
b	-	-	-
c	-	-	-
8	Sub Total (Sum of Sr.1 to 7)	-	-
9	Service Charge as a % of Sr.8 above (to be decided by the bidder)		
10	Total Cost per Head in (Sr No 8 +Sr No 9)	-	-
11	GST	Extra as applicable	

-

-

While filling price bid kindly consider the following points: -

i) Price Bid, strictly as per above format be filled and uploaded on GeM portal. The same price must be filled on GeM portal for display & L1 determination. Price bid will be rejected if any difference observed in displayed price on GeM & uploaded price bid.

ii) The charges mentioned from Sl No. 1 to 4 are mandatory and as per prevalent acts and rules. Sl 5 is mandatory only if applicable as per prevalent acts and rules. Not quoting any amount in these serials or quoting below the statutory minimum will render the submitted Price bid null and void.

iii) The total cost at Sr No 10 (Sum of Sr. No. 8 + Sum of Sr. No. 9) will be considered for deciding L1.

iv) The Basic & VDA (Sr. No. 1) should not be quoted less than the minimum wages fixed and revised from time to time, by the Ministry of Labor and Employment, Government of India for employment of Watch and ward staff. Where the Central and state Governments have fixed different rates of minimum wages, the rates whichever is higher will be applicable. The minimum rates of wages also include the wages for the weekly day of rest as per Govt. guidelines.

v) Employer's contribution of EPF shall be paid by the Bank as per rules.

vi) ESI only where applicable will be as per **applicable rates** will be calculated based on Sl. No. 1 (Basic + VDA).

vii) GST on Total cost per head shall be paid extra as per extant Rules.

11. For further clarifications if any, you may contact the following email / address

rso.goa@unionbankofindia.bank.in

Address for Communication

-

The Regional Head
Regional Office, Goa
2nd Floor, LIC Building, EDC Complex,
Panjim, Goa :403001

Sign:

(Letter to the bank on the Supplier's letterhead)

-

-

To

The Regional Head
Regional Office, Goa
2nd Floor, LIC Building, EDC Complex,
Panjim, Goa :403001

Dear Sir,

Sub: Submission of Bid for deployment of Security Guards

With reference to your tender notice published on GEM Portal and having examined & understood the instructions, terms and conditions forming part of the tender document, we hereby submit our offer for providing Security Guards (Unarmed) Services as detailed in your above referred tender document.

1. I / We confirm that we have not been disqualified by any PSUs/PSB for deployment of Guards.
2. I / We further confirm that the offer is in conformity with the terms and conditions as mentioned in the tender document.
3. We also confirm that the offer shall remain valid for Three months from the last date for submission of the offer.
4. I / We hereby confirm that we have read the terms and conditions given in this tender document and agree to them.
5. I / We understand that the Bank is not bound to accept the offer either in part or in full and that the Bank has the right to reject the offer in full or in part without assigning any reason whatsoever.
6. I / We enclose herewith a proof of EMD (if applicable) for Rs. _____ only), details of the same are, as under:
Demand Draft/BG/Online Transaction UTR :
Date of DD/BG/Online Transaction :
Name of Issuing/paying Bank :
7. I / We agree that the decision of Union Bank of India in selection of service providers will be final and binding to me / us.
8. All the information furnished by me/us above here is correct to the best of my/our knowledge and belief.
9. I / We agree that I / We have no objection if enquiries are made about the work listed by me / us here in above and/or in the accompanying sheets.
10. I/We (Proprietor/ all partners) are not convicted or facing any criminal proceedings in Court/competent authority under Law of the land.
11. I / We have read the instructions as mentioned in tender document & also on GeM portal and I / We understand that if any false information is detected at a later date, any contract made between ourselves and Union Bank of India on the basis of the information given by me / us can be treated as invalid by the Bank and I / We will be solely responsible for the consequences.

Place.

Date.

Yours faithfully,

Authorized Signatories

(Name & Designation, seal of the firm)

-

(Letter to the bank on the Supplier's letterhead)

-

BIO – DATA OF Private Security Agency / FIRM

1. a) Name of the Firm :

b) Address :

c) Telephone Nos.

Office :

Residence :

Mobile :

Fax :

e-mail :

2. a) Whether Proprietary/Partnership/ Pvt. Ltd. / Public Ltd. :

(Certificate of Registration / Partnership Deed to
be enclosed).

b) Name of the Partners, Directors :

i)

ii)

c) Year of establishment :

3. a) Registration with concerned authorities at **Head Office Location:**

i) Income Tax (PAN, TAN) No. :

ii) GSTIN no. :

iii) EPF Regn. No. :

iv) ESI Regn. No. :

v) ESI sub code Regn. No. in _____ state :

vi) Shops & Establishments Act. :

vii) Private Security Regulation Act 2005/
PASARA :

Enclose all concerned certificates.

b) Address, Mobile/Tel. Nos. & e-mail ID of Offices/Branches in _____ and Nos. of Employees:

Name, Address & Tel. /Mobile Nos. of Centers	e-mail ID	Nos. of Employees at each Center

4. Names of Bankers with address & telephone numbers:

i)

ii)

5. Furnish copies of **Audited Balance Sheet** and **Profit & Loss A/C** for the last 3 years i.e. F.Y. 2023-24, 2024-25, 2025-26.

6. **Empaneled / Contract** with Govt. / Public Sector Banks / Central/State PSU - (Certificates/Letters of Registration to be enclosed)

Name of the Organization	Year since empaneled / Contracted

7. Give details, if at present involved in **litigation** in similar type of contracts:

Sr. No.	Name of Project	Name of Employer	Nature of work	Work order dated	Date of completion of work	Value Rs.

8. Details of civil suit, if any, that arose during :
execution of contract in the past 5 years.

9. Specify maximum value of single value :

project executed during the last three years.

10. Name & relation, if any, with the staff member :
of Union Bank of India.

11. Details of **Work Executed** during the last **5 years**:

Type of work	Name of Client	Nature of work (in brief)	Location	Value Rs.	Duration of actual deployment		If work left incomplete or terminated (give reasons)

Note: Enclose copies of Work Orders/Client Certificate, TDS Certificate, satisfactory Completion Certificate from Clients.

12. Contact details of responsible persons in Local Office

Name	Designation	Mobile No.	e-mail ID
-	-	-	-

13. **Turnover** in last **3 years (Rs.in lacs)**:

Sr. No.	Year	Turnover	GST Paid
1			
2			
3			

Note: Copies of Tax Returns & Assessment Orders, for each year to be enclosed.

14. Details of Training facility

- i. Address of training facility:
- ii. If tie up arrangement, details of the same:
- iii. Whether facility for firing practice available:

NOTE:

- i. **Without copies** of Documents, Certificates of Registration, Performance Certificates, Work-Orders, Details, Credentials, Supporting Documents, etc., duly stamped and signed, your **application is liable to be rejected without assigning any reason.**
- ii. Details to be filled up in all columns.
- iii. Attach additional sheet wherever required.

Affidavit (to be submitted on non-judicial stamp paper (of value as per Government norms) and should be duly signed by the Director/s /all Partners/ Proprietor)

I (Name of Director/Partners/ **P**
roprietor), s/o Resident of ...
.....
.....
.....(Permanent Address) is the Owner/Partner/Director of Private Security Agency M/S.....

The Firm/Company is registered under Private Security Agencies (Regulation) Act 2005 under state.....
..... and the license is valid in area.....
..... till date.....
..... (Copy of PSARA license attached). The firm/Company **is in/Not in** (tick whichever is applicable)
e) possession of a valid Labour License for provision of watch and ward Casual/Contract Labour from the
office of the concerned Labour department in accordance with the Government orders on the subject.

On behalf of (Name of service provider) M/s , I undertake the following: -

1. That the payments will be made to all the guards deployed at the Branches of Union Bank of India as per minimum wages as applicable to the area and as revised from time to time by the Labour department, and as per minimum wages Act 1948.
2. That Employee's provident fund (EMPLOYER AS WELL AS EMPLOYEE contribution) will be deposited to the concerned authorities as per employees' provident and miscellaneous provision act 1952 in respect of our guards deployed at the branches of Union Bank of India.
3. That ESI contribution, if applicable (on the BASIC+VDA+ALLOWANCES) will be deposited to the conce

armed authorities as per employees' State insurance act 1948 in respect of our guards deployed at the branches of Union Bank of India.

4. That the bonus will be paid to all our guards as per bonus act 1965 in respect of guards deployed at the branches of Union Bank of India.
5. That the gratuity will be paid to the security guards deployed at the branches of Union Bank of India as and when they become eligible for such payment under the relevant law.
6. That all the guidelines will be followed as stipulated from time to time by Ministry of Labour and Employment.
7. That the firm will be solely responsible for any Noncompliance to Minimum wages Act 1948 and other Labour laws and rules applicable in the state of Goa.
8. That the firm will be solely responsible for any dispute arising out of the appointment/termination of services of the armed guards deployed in the branches of our bank.

**Signature of Director/Partners/Proprietor
With name and Seal**

Date:
Place:

REFERENCE SITE DETAILS

Name of the Client	-
Address of Office from where feedback is to be sought.	-
Name, designation of contact person with telephone No. and e-mail id	Name: Designation: Contact No.: E-mail id:
No. of Security Guards deployed in last 3 years (Ref. No., date of order and quantity)	-

Reference site details of THREE clients be given in above mentioned format for which additional sheet may be used.

Note:-

Please provide all data as mentioned above, including contact details. Email id should be from firm's domain only. Emails from gmail, rediffmail and other similar domains will not be accepted under any circumstances.

AUTHORISED SIGNATORY

-

FORMAT FOR AGREEMENT

PROVIDING/OBTAINING SECURITY GUARD (UN ARMED) SERVICES

This Agreement is entered at _____ (Place) on the ____ day of _____
_____ between Union Bank of India, _____ (Branch/Office) _____ at _____
_____ (Address) represented by its attorney Shri _____
_____ hereinafter referred to as the First Party

AND

The Private Security Agency(PSA) M/s. _____ represented by its _____
_____ (designation), Mr./Mrs./Ms. _____ (name) and having its office at _____
_____ (address) hereinafter referred to as the PSA which expression shall wherever the
context so admits, means and includes his legal representatives, successors & assignees as the Second Party.

Whereas the First Party requires the services of a Second Party for safeguarding its properties and assets.

Whereas the PSA, providing security guards(Unarmed) services has agreed to provide Security Guards (Unarmed) (Strike out whichever is not applicable), hereinafter referred to as "PSA's Employees" to the First Party as per the First Party's requirements and terms & conditions of the RFP.

Whereas the PSA and the First Party have agreed to enter into a service contract for a period of _____ months w.e.f. _____ till _____ which shall be deemed to be automatically terminated thereafter unless renewed by the First party for the purpose of obtaining security guards services on the terms and conditions as mentioned hereunder.

Now therefore this agreement witnesseth as under:

1. The PSA declares that the PSA is in possession of the valid licence issued under Section 7 of the Private Security Agencies (Regulation) Act 2005 and the PSA further undertakes that the licence will be renewed from time to time and will be valid during the entire period of the Agreement, failing which this agreement shall stand automatically cancelled and the First Party shall not make any payment.

2. PSA shall ensure that ____ No. of Armed Guards/Security Guards possessing the required skill and training shall be deployed at the branch/office/ATM (Strike out whichever is not applicable). PSA's Employees shall not be more than 55 years of age at the time of first deployment.
3. The PSA hereby undertakes to abide by the requirements of eligibility criteria and physical standards for the PSA's employees and their training as prescribed in the Private Security Agencies (Regulation) Act 2005, the Rules framed there under and the amendments there to.
4. The PSA shall ensure that the PSA and their employees deployed with the first party shall comply with all obligations, conditions and restrictions regarding uniform, photo identity card, etc., stipulated in the Private Security Agencies (Regulation) Act 2005 and Rules framed there under.
5. If the State Law requires the registration of the PSA with the Welfare Board of Security Guards or any such other Board constituted under the State law, completion of such registration shall be ensured by the PSA before deploying their employees with the first party.
6. The PSA agrees that the duty of the deployed security guard (Un armed) is to keep a watch over persons visiting the branch/office or ATM for the purpose of safety & security and guard against infiltration and against removal of bank's property by any unauthorized person AND/OR to watch and guard as above the movement of cash from one place to another whether inside or outside the Bank.
7. The PSA shall ensure that the PSA's Employees shall be conversant with the use of Fire Extinguishers and shall take necessary action in case of activation of Fire Alarm System or in case of a fire in the branch/office.
8. PSA shall provide the names of PSA's Employees to the branch/office before their deployment. The PSA shall furnish the names, permanent & local addresses of the PSA's Employees deployed at First Party's premises from time to time along with their latest photographs, thumb impression, signatures & Aadhaar Identify Proofs.
9. The PSA shall ensure that the PSA's Employees function under general directions of Branch Manager / Authorised Official and perform duty according to the duties given in the tender document to this Agreement. The PSA shall also ensure that the PSA's Employees deployed at branch/office/ATM have read & understood their duties.
10. The PSA will provide PSA's Employees with uniform (Summer/Winter), caps, raincoats, torches and other accessories (Photo I-Card, name Tab, baton, whistle etc) initially and replace the same periodically as and when required. At no point of time the uniform or its liveries should be faded/untidy/torn.
11. Before deployment of their employees, the PSA shall arrange for verification of antecedents of all the PSA's Employees by the police and such Police verification Certificates shall be submitted to the First Party before deployment of Security Guards or their subsequent relievers.
12. PSA's Employees shall be medically fit, mentally sound and possess good physique and not be suffering from any contagious / major diseases. Wherever required by the First Party, the PSA will provide literate PSA's Employees to perform the assigned duty efficiently.

13. The PSA will change the PSA's Employee immediately on instructions from the First Party if the performance/behavior of that particular PSA's Employee is not acceptable or if found physically/medically unfit and the decision of the First Party will be final in this regard.

14. The PSA shall ensure that the PSA's Employees shall not accept any eatables, tea, coffee, tobacco etc., from strangers. The PSA's Employees shall not consume tobacco, alcohol or other intoxicants or be found in an inebriated state or smoking during the duty hours.

15. A PSA shall ensure that no familiarity develops between the PSA's Employees and the First Party staff. Further, the PSA shall ensure that the PSA's Employees do not indulge in any activities including money transactions, which may tarnish the image of the First Party.

16. A Security Supervisor will be detailed by the PSA. Such security supervisor shall report to the concerned branch/officer in-charge/official at least once a week for the purpose of briefing /debriefing. He must carry out checking of guards wherever deployed for alertness on regular basis as instructed by Branch/Office. First party will not be liable for any separate payments for this arrangement and the cost of such supervisory arrangement shall be borne entirely by the PSA at its own end.

17. The PSA shall ensure that at no point of time during the prescribed duty hours, the PSA's Employee will be on leave or absent from his place of duty without a reliever and that they shall remain alert during their working hours to prevent theft/pilferage and any other untoward incidents.

18. PSA shall maintain duty register for each PSA's Employees and get the register checked by the Bank's branch/office daily, along with timings. In case a PSA's Employee is found absent from the place of his duty, the pro-rata payment for the days of absence will be deducted from the payment due to the PSA.

19. The PSA shall maintain up to-date record of PSA's Employees as per the Shops & Establishment Act and will discharge all obligations under various Labour Laws viz. EPF Act, ESI Act, Gratuity Act, Bonus Act, Workmen's Compensation Act, Contract Labour (Regulation & Abolition Act), etc or under any other State/Union Legislation in respect of PSA's Employees and shall produce these records for verification as when demanded by the First Party.

20. The PSA shall be responsible for all acts of Commission and/or Omissions by its employees leading to loss and/or damage to First Party's employees and/or third Parties and shall meet all liabilities arising out of such Omissions and/or Commissions.

21. PSA shall alone plan, relieve, decide and be responsible for the leave or absence of the PSA's Employees on any grounds and First party shall not in any way be responsible for sanction of leave, etc. to the PSA's Employees.

22. PSA shall maintain proper records /details of the PSA's Employees deployed in the branch/office/ATM of First Party. It shall submit monthly bills to the branch/office by 5th of each month giving details of the PSA's Employees deployed and the payment claimed for each of them. All payments under this agreement shall be made to the PSA by the Bank's branch/office, where the PSA's Employees are deployed on a monthly basis by a crossed cheque/online credit in favour of PSA within four working days of receipt of the relevant bill from the PSA. However, in case of any discrepancy in the bill detected by the First Party, the payment will be

e released to the PSA within four working days from the date of resolving the discrepancy by the PSA.

23. PSA shall be fully and absolutely responsible for the payment of salary and other statutory dues for/to PSA's Employees like salary/wages, bonus, arrears, overtime, EPF & ESI contributions employment/terminal benefit, compensation or other claims of whatsoever nature to PSA's Employees and First party will not undertake any liability in relation to such matters.

24. The PSA's Employees shall not claim any employment relationship with First party under any circumstances. The PSA shall obtain written undertaking from each of the PSA's employees deployed with the First Party that he is a permanent employee of the PSA and the written undertaking in original shall be given to the First Party's Office, where he is deployed.

25. PSA hereby undertakes to ensure payment of wages to its PSA's Employees in compliance with Minimum Wages Act and other relevant statutes in force and modified/amended or revised from time to time as per enactments of Central/State Governments.

26. The PSA hereby undertakes further that additional/excess payment over the contracted amount, which may arise due to extraneous reasons during the currency of this agreement, shall be borne by the PSA alone and the First Party shall not be liable to pay any excess amount.

27. The PSA shall pay the monthly wages to PSA's Employees deployed with the First Party by crediting the Savings Bank Account of the PSA's Employees with any bank.

28. PSA shall submit printed receipts for all the payments received from First Party. The PSA shall also furnish the proof of having paid the wages to the PSA's Employees engaged by them within one week of the disbursement of the wages to them and proof of having paid the statutory dues to the concerned authorities on a monthly basis. Non-payment of monthly wages by the PSA to the PSA's employee deployed with First Party will make this contract null and void and will result in termination of the deployment of PSA's employees with the First Party with immediate effect and the First Party will not be required to make any payment to the PSA thereafter.

29. First Party shall not make any direct payment of whatsoever nature to the PSA's Employees. All payment payable by First Party in connection with or arising out of this agreement shall be made only to PSA and not to the PSA's Employees.

30. PSA shall also ensure that the PSA's Employees do have their own arrangements for their food, beverages and refreshments.

31. In case of any injury/death of any staff member of First Party or a public member because of firing of weapon of the PSA's Employees for any reason, PSA shall be liable to pay compensation as deemed necessary and become payable to the injured/deceased or their legal claimants. All legal proceedings and expenses towards such incidents/accidents will be borne by the PSA without involving the first party at any stage.

32. In case of any mishap of whatsoever nature (minor / major / fatal including death during the course of their duty) sustained by PSA's Employees, the responsibility for meeting the medical/hospitalization expenses or of granting compensation, if any, on that count will be that of the PSA and not of the First Party. If for any reason, compensations, costs etc., are paid by the First Party, the same shall be reimbursed by the PSA to First Party without any demur, including interest at ruling rate till settlement and such settlement shall be

e made by the PSA within one month from the date of Demand by the First Party and upon failure of the PSA to do so, the First Party shall have the right to adjust the monthly bills payable to the PSA towards the amounts payable by the PSA till the entire dues are paid/settled off.

33. In the event of theft, pilferage, damage to property of the First Party or any other loss, the First Party shall report the matter to the local police first. The PSA agrees that in case of any loss of cash/materials/other properties of the bank, which may arise directly or indirectly due to absence or dereliction of duty or inattentiveness or negligence or collusion of the PSA's employee, such loss will be made good by the PSA and all liabilities arising out of such incidents will be fully met by the PSA. If the inquiry reports of the First Party and the PSA are conflicting on this point, it is agreed between the parties that the First Party's report shall prevail and be final. Such quantum of loss assessed and payable by the PSA shall be paid to First Party within a month of demand and upon failure of the PSA to do so, the First Party, without prejudice to other recovery measures either through Court of Law or otherwise, shall have the right to invoke the Bank Guarantee in favour of the First Party submitted by the PSA or to adjust the monthly bills payable by the First Party to the PSA towards the amounts payable by the PSA till the entire dues are paid/settled off.

34. Neither the PSA nor any of the PSA's Employees will have any claim against the First Party for any liability arising out of any commission / omissions caused by the PSA's Employees while on duty.

35. The PSA's Employees deployed for the security of the branch/office/ATM as per terms of this Agreement shall always be treated as employees of the PSA only and will not have any right to seek employment in the services of the First Party. There shall be no relationship whatsoever between the First Party and the PSA's Employees. PSA shall also make it clear to PSA's Employees that they shall not, under any circumstances, claim any right of employment from First Party and the PSA shall continue to be their employer.

36. In return for fixed sum/rates, the PSA shall at its own risk & cost provide services of PSA's Employees as per the requirement of the First Party purely on Contractual basis.

37. PSA undertakes to submit a copy of licence from the Ministry of Labour, Govt. of India, or exemption certificate from the State Government, for providing security guard services in offices/ATMs of First Party before deploying their employees with the First Party.

38. PSA states and admits explicitly that the work assigned by First Party to it is not perennial in nature and the First Party has the right to terminate the assigned work, if in its assessment and opinion, the need for the assigned work ceases to exist. The assignment/engagement is well defined, quantified, time-bound and specified by the First Party to PSA and, in turn, by the PSA to PSA's Employees.

39. PSA shall ensure to submit annual returns to various Authorities and also ensure compliance of all the applicable laws, rules and regulations for which PSA shall be solely responsible.

40. PSA hereby agrees to indemnify and keep First Party indemnified against any loss, damage, compensation, cost etc., that First Party might be required to incur/pay arising out of litigation, non-compliance or breach of statute/s, regulations etc., by the PSA or even otherwise.

41. The First Party as well as the Reserve Bank of India shall have the right to access all books, records and information relevant to the PSA's employees deployed with the First Party and shall have the right to cause an inspection on the PSA's office & training infrastructure and audit the books & records as relevant to the services provided to the First Party.

42. The PSA shall preserve all the data and documents pertaining to their employees deployed with the First Party for not less than three years and shall make them available to the First Party, if and when demanded.

43. The PSA shall not sub-contract the armed guards' services provided to the First Party to any third party without the prior approval of the First party.

44. This Agreement can be terminated by either Party at one month's notice in writing. However, if the First Party terminates this Agreement/Contract due to the PSA violating any of the terms of this Agreement or due to non-performance of the terms of this Agreement or due to any negligence on the part of the PSA or PSA's Employees, the First Party shall not be required to give any notice and the Agreement shall stand terminated on the date following the day on which the PSA receives, from the First Party, the intimation about such violation or non-performance or negligence.

45. In continuation of the Clause 44 above, if any of the terms / clauses of this agreement remains violated or non-rectified or not adhered to by the PSA for more than one month even after due notice of such violation or non-adherence, the PSA agrees that apart from terminating the Contract, the First Party will have the right to blacklist the PSA for the next five years and to invoke the Performance Bank Guarantee and forfeit the entire amount covered by the Performance Bank Guarantee as penalty for non-adherence to this agreement / contract.

46. In consideration of the services as stated herein above, First Party agrees to make payment @ of Rs. _____ for each Armed Guard / Rs. _____ for each Security Guard (excluding taxes) and after deducting TDS (if applicable) to the PSA for each completed month of services or pro-rata thereof.

We the above noted parties have signed this deed of agreement after having understood the contents of this deed on the date and place mentioned above.

(Signature)

(Signature)

Authorised Signatory

Authorised Signatory

For BANK (with seal)

For Private Security Agency (with seal)

-

-

(First Party)

(Second Party)

-

Duties & General Conduct of Unarmed Guards:

1. Unarmed Guard shall perform duty for eight hours on all working days and shall report to the Site 15-30 minutes prior to opening of the branch/shift hours.
2. On start/completion of duty at the site, the Unarmed Guard shall inform the Bank's Branch Manager/Authorized official for taking over/completing the duty and about the condition of the site.
3. Unarmed Guard shall perform duty only in prescribed uniform provided to him by his employer i.e. PSA.
4. Unarmed Guard shall check and inform of any damage, accident, pilferages, incident, fire/arson, etc., as also, any defect/malfunctioning of ATM, electrical equipment's, lights, AC, etc. to Branch Manager/Authorized Bank official.
5. Unarmed Guard while performing duty at the ATM /office shall keep watch on persons visiting the branch/office and inform Branch Manager/Authorized Officer about any suspicious movement/activity.
6. Unarmed Guard is to keep a watch over persons visiting the ATM/office for the purpose of safety & security and guard against infiltration and against removal of bank's property by any unauthorized person AND/OR to watch and guard as above the movement of cash from one place to another whether inside or outside the Bank.
7. At office site, Unarmed Guard on duty should allow access to ATM card holders only and permit one ATM card holder inside the ATM at one time.
8. Unarmed Guard should ensure that the ATM Entrance/office Main Gate is not obscured/blocked by parking vehicles etc. and that parking of Vehicles inside the premises is systematic and no vehicle is parked at unwanted areas/places.
9. In case anybody leaves behind any bag, suspicious item, etc., Unarmed Guard, on duty, should immediately inform Branch Manager, Security Officer or Police.
10. Unarmed Guard should interact with customers/office visitors/staff with respect and politeness.
11. Unarmed Guard should not leave the place of duty unless properly relieved during duty hours and after duty hours (at offices).
12. Unarmed Guard shall check the Electronic Alarm System, CCTV and Fire Alarm System fitted at the ATM site daily and if these systems are found defective at any point of time, he shall report the matter to Branch Manager/Authorized official/AMC Firm for rectification of defects.
13. Unarmed Guard shall be conversant with the use of Fire Extinguishers and shall take necessary action in case of activation of Fire Alarm System or in case of a fire in the ATM/office.
14. Unarmed Guard shall escort cash remittances, as and when required by the branch.
15. Unarmed Guard shall perform security related duties only and shall not get involved in any other work or banking related operations or any other activity at the Branch/Office.
16. At Office location Unarmed Guard shall ensure that there is no misuse of property/equipment by anyone in the premises specially, canteen staff, workers of agencies, etc. and inform authorized official.

17. At Office location Unarmed Guard shall ensure that only desired electrical lights in the periphery and inside are kept on during nighttime and put off during daytime.
18. Unarmed Guard shall not accept any eatables, tea, coffee, tobacco etc., from strangers. The PSA's Employees shall not take any alcohol or intoxicants or be found in an inebriated state or smoke during the duty hours.
19. Unarmed guard shall not use his firearm on any occasion except as his right to his private defence as provided u/s 34 to 44 of the Bhartiya Nyaya Sanhita 2023 (where applicable).

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Format for Performance Bank Guarantee

Guarantee No.: _____

Date: _____

In consideration of the Union Bank of India, Regional Office, having its Office at
..... (Hereinafter referred to as the 'First Party' which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators and assigns) having selected and intimated M/s.
..... (Name of PSA) having its registered office at
Name & Address of Vendors H.O.) (Hereinafter referred to as the "Second Party" which expression shall unless repugnant to the context of meaning thereof, include its successors, administrators, executors and assigns), by means of letter No. dated for providing the services of Security Guards and Armed Guards at its ATMs / Branches, the Second Party has agreed to furnish a Bank Guarantee valued at Rs. (Rupees only) to keep the "First Party" indemnified from time to time for any breach of terms of the "Agreement" the Second Party is to enter with any of the branches/offices of the First Party.

We -----(Name and Address of Bank) (hereinafter referred to as the 'Bank' which expression shall, unless repugnant to the context or meaning thereof, include the successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the "First Party", on demand any and all moneys payable by the "Second Party" to the extent of Rs. _____ (Rupees _____ only) as aforesaid at any time up to _____ (Date), without any demur, reservation, contest, recourse or protest and without any reference to the "Second Party". Any such demand made by the "First Party" on the 'Bank' shall be conclusive and binding notwithstanding any difference between the "First Party" and "Second Party" or any dispute pending before any court, tribunal or any authority. The Bank undertakes not to revoke this guarantee during its currency without previous consent of the "First Party" and further agrees that the guarantee herein contained shall continue to be enforceable till the "First Party" discharges this guarantee. The Bank shall not be released of its obligations under these presents by any exercise by the "First Party" or by any other matter or thing whatsoever which under law would, but for this provision, have the effect of relieving the Bank.

We _____ the bank further agree that the "First Party" shall have full liberty, without our consent and without affecting in any manner our obligation hereunder to vary any of the terms and conditions of the Agreement entered into between the "First Party" and the "Second Party" for providing security guards for the "First Party" or to extend time of performance of its obligation by the "Second Party" from time to time or to postpone/forbear for any time or from time to time any of the powers exercisable by the "First Party" against the "Second Party" and to forbear or enforce any of the terms and conditions relating to the said Agreement and shall not be relieved from our liability by reason of any such variation or extension being granted to the "Second Party" or for any forbearance, act or omission on the part of "First Party" or any indulgence by "First Party" to the "Second Party" or by any such matter or thing whatsoever which under the law relating to sureties would but for this provisions have effect of so relieving us.

The Bank also agrees that the "First Party" at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the "Second Party" and notwithstanding any security or other guarantee that the "First Party" may have in relation to the "Second Party" liabilities.

The Bank hereby expressly agrees that it shall not require any proof in addition to the written demand from the "First Party", made in any format, raised at the abovementioned address of the Bank, in order to make the said payment to the "First Party".

The Bank hereby agrees and acknowledges that the "First Party" shall have a right to invoke this Guarantee either in part or in full, as it may deem fit.

The Bank acknowledges that this guarantee is not personal to the "First Party" and may be assigned, in whole or in part, (whether absolutely or by way of security) by the "First Party" to any entity to whom it is entitled to assign its rights and obligations under the Guarantee.

This Guarantee shall not be affected in any manner by reason of merger, amalgamation, restructuring, liquidation, winding up, dissolution or any other change in the constitution of the Guarantor Bank.

Notwithstanding anything contained herein:

- a) Our liability under this Bank Guarantee shall not exceed Rs. _____ (Rupees _____ only)
- b) This Bank guarantee shall be valid up from _____ (Date) to _____ (Date).

- c) We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if the First Party serves upon us a written claim or demand on or before _____ (Date).
- d) At the end of the claim period that is on or after _____ (Date), all the right of "First Party" under this guarantee shall stand extinguished and we shall be discharged from all liabilities under this guarantee.

Witness

Dated this Day of _____ (month, year) at (Place).

Signature.....

Signature.....

Name

Name.....

Official Address

Designation with Bank stamp

7. Buyer Added Bid Specific Scope Of Work(SOW)

File Attachment [Click here to view the file.](#)

8. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

Additional Terms & Conditions (ATC)

Providing Services of Outsourced Security Guards (Unarmed) in the Branches/Offices/ATMs of Union Bank of India under Regional Office, Goa

1. SCOPE OF THE WORK: -

Union Bank of India, a leading public sector bank, having its Central Office situated at Nariman Point, Mumbai (herein after referred as 'Bank' or 'the Bank') has its network of branches and ATMs situated across length and breadth of the country. The bank is having structured Administrative Offices situated in major cities across the country and are called Zonal / Regional offices, which provide administrative guidance and support to the branches in their jurisdiction.

Present Notice Inviting Tender is for estimated deployment of 08 Unarmed Security Guards in various branches in North & South districts under Regional Office, Goa. However, the exact number of guards may change as per bank guidelines, approval of competent authority and requirements of the bank.

2. Terms & Conditions:

2.1. Deployment of Unarmed Security Guards is to be completed within a period of 30 days commencing from the date of acceptance of the offer. If the PSA fails to deploy Security Guards within given time, the order shall be cancelled.

2.2. Formats of documents mentioned in this RFP are final and not open to any modification.

2.3. If Bank changes/modifies any guidelines regarding deployment of security guards in branches, such guidelines will prevail and supersede the terms of contract arising out of this RFP.

2.4. Bank reserves all rights to either reduce or increase the number of security guards to be deployed in bank/branches as per their requirements. The Bank reserves the right to alter the order/orders.

3. Earnest Money Deposit:

-

3.1 The Service provider / Bidder shall furnish, as part of its bid, Earnest Money Deposit (EMD) as mentioned on GeM in the form of a Demand Draft in favor of Union Bank of India payable at Goa / through online mode or in form of Bank Guarantee (issued by any Bank other than Union Bank of India). Bank details for remitting by online mode is given here below. Hard copy of the payment proof (UTR No. etc) must be enclosed with technical bid. Bidders claiming exemption from submission of EMD must substantiate their eligibility for exemption with relevant documents. If submitted by way of BG, the same must be valid for 135 days from date of submission of technical bid. BG/DD wherever applicable, must reach to our office before closing date & time of tender submission.

Account Name	:	Inward RTGS
Bank Name	:	Union Bank of India
Account Number	:	561301980050000
IFSC code	:	UBIN0556131

3.2 The successful Bidders' EMD will be discharged upon the Bidders' signing the contract & furnishing the Performance Bank Guarantee. Unsuccessful Bidders will be intimated the reasons for their not being qualified through GeM and EMD deposited by them, if any, will be returned in due course.

3.3 The EMD may be forfeited:

- i) If a Bidder withdraws/modifies its bid during the period of bid validity; or in the case of a successful Bidder, if the Bidder fails:
 - a) To execute the contract within the stipulated time, or
 - b) To furnish Performance Bank Guarantee within the stipulated time.
- ii) At any stage of evaluation, if a bidder is found to have given false declaration / certification / information in Technical Bid, Bank may at its discretion forfeit EMD and reject the bid.

4. ELIGIBILITY CRITERIA FOR SERVICE PROVIDERS

-

4.1 Service providers shall submit all relevant proof documents along with the tender. Bidders not conforming to any of the parameters as on last date for submission of bids will not qualify for short listing. Following is the list of eligibility criteria for vendors/security agencies: -

4.1.1 Service providers / Bidders should be a registered company / registered partnership firm / proprietary firm for providing security guards' services since last five years or more. (Proof document- valid Registration Certificate of RoC for Registered companies/registered partnership deed for partnership firm/re

gistration certificate or any other document substantiating age of firm, for proprietary firm).

- 4.1.2 Service providers / Bidders should have obtained a license in accordance with section 4 & 7 of the Private Security Regulation Act 2005 in the state, where the act has been implemented (Proof documents- Valid PSARA License for the State of Goa). The license should be valid for the entire state. The license should remain valid through the period of contract. At any point of time, if the PSARA license remains invalid for more than 3 months, Bank reserves all rights to cancel the contract. Service providers / Bidders who do not fall under the ambit of PSARA License are required to submit necessary supporting document to prove that the Service providers / Bidders is Government agency/eligible for exemption as per official Government gazette/official document.
- 4.1.3 PSA / Bidders should have at least one of its own offices in the state of Goa. Such office must have a valid Registration under Shops & Establishments Act applicable in the State. (Proof document- valid Registration Certificate for the offices in the State of Goa).
- 4.1.4 Service providers / Bidders should have valid Registration with ESI Corporation under ESI Act and should have been allotted with a code number by the ESIC (Proof Document – valid Registration Certificate with Code number from ESIC and Sub code allotted in the State of Goa).
- 4.1.5 Service providers / Bidders should have a valid Registration with EPFO under EPF & Miscellaneous Provisions Act 1952 and should have been allotted Registration number (Proof document- valid Registration Certificate with Registration number of EPFO)
- 4.1.6 Service providers / Bidders should have Income Tax PAN and should be submitting IT returns for last three years (Proof documents – Copy of valid PAN Card and IT Return Acknowledgement copy for last three years).
- 4.1.7 Service providers / Bidders should have a Registration for GST and should have been allotted with Registration number (Proof document- Valid Registration Certificate with GSTIN).
- 4.1.8 Service providers / Bidders should have minimum five years' experience of providing Security Guard's services to Public/Private Sector banks / Central PSU / State PSU. (Proof documents- work orders from banks substantiating providing services since last five years). **Exemptions to eligible MSEs as per govt guidelines will be applicable on production of valid documents.**

- 4.1.9 Service providers / Bidders should have average annual financial turnover of Rs 26 Lakh during the last three years and should be in profit in the last three financial years (proof documents - Audited Balance sheet and P & L statement for each of the last three financial years).
- 4.1.10 Service providers / Bidders should have their own infrastructure for training of their Security guards. [Otherwise, tie-up arrangement with PSARA registered training establishments, provided if, PSARA applicable in the State permits such tie-up arrangement for training] (Proof documents- Registration Certificate of training establishment under Shops and Establishments Act for own training facility/documents substantiating tie-up arrangement with PSARA registered training establishment).
- 4.1.11 Service providers / Bidders should have at least one office in the area under jurisdiction in the state of Goa. The office should be equipped with telephone & email facility and the office should be physically manned during the office hours on all working days. The office should be in existence before the date of publishing of this tender. (Proof Documents – Registration of the office under Shops & Establishment Act applicable in the State, latest telephone bill, muster roll/attendance record of the office staff).
- 4.1.12 Service providers / Bidders should have credible supervisory infrastructure and network in the state (Proof Documents – Muster Roll/Attendance record of supervisory staff with designation, placed with the offices in the State).
- 4.1.13 Service providers / Bidders shall not be owned or controlled by any director or officer/employee of Union Bank of India or their relatives having the same meaning as assigned under Section 6 of the Companies Act 1956 (Proof document- Self declaration by the Director/Partner/ proprietor substantiating the criteria).
- 4.1.14 Service providers / Bidders should be complying with Minimum Wages Act 1948 and amendments there to (Proof documents – Copies of Salary slips for the month of March 2026, April 2026 & May 2026 issued to Security Guards (Unarmed) deployed in area A, B & C of any principal employer).
- 4.1.15 Service providers / Bidders should be remitting EPF contributions on-line (Proof documents – Copies of Electronic Challan-Cum-Return (ECR) for the month of March 2026, April 2026 & May 2026 for same Security Guards (Unarmed) for whom salary slips are submitted as mentioned above).
- 4.1.16 Service providers / Bidders should be remitting ESI contributions on-line (Proof documents – Copies of electronic Contribution History Sheet (CHS) for the month of March 2026, April 2026 & May 2026 for same Security Guards (U

armed) for whom salary slips are submitted as mentioned above).

4.1.17 Service providers / Bidders should be remitting net salary to security guards' Bank Account (Proof documents – Copy of security guards Bank Account passbook/statement indicating credit of the net salary for the months of March 2026, April 2026 & May 2026 for same Security Guards (Unarmed) for whom salary slips are submitted as mentioned above).

4.1.18 If the Director/Partner/Proprietor of the Service providers / Bidders is convicted by any Court/Competent authority OR facing criminal proceedings under the law of the land, Bank reserves all rights to reject offer from such Service providers / Bidders. Affidavit in this regard is to be submitted by the Director/Partner/Proprietor as per given format. The same should be signed by Director/ all Partners/ Proprietor only. Failure to submit the affidavit as per given format will disqualify the bid.

-

5. QUALITATIVE REQUIREMENTS (QR) FOR UNARMED SECURITY GUARDS

The following guidelines shall be adhered to while outsourcing Security Guards (Unarmed) through the contracted Service providers / Bidders for Branches:

a. Security Guard (UnArmed) should preferably be an ex-serviceman / CAPF personnel. In case of normal Civilian Guard should be of sound health. Their medical fitness will be considered as per medical fitness certificate from Registered Medical Practitioners with qualification not less than M.B.B.S., and to be provided to bank at the time of deployment.

b. Age of the Security Guard (Unarmed) at the time of first deployment should not be above 55 years.

c. Security Guard (UnArmed) should have been released from his parent service in medical category SHAPE-I or equivalent and be medically fit in all respects at the time of deployment. Their medical fitness will be considered as per medical fitness certificate from Registered Medical Practitioners with qualification not less than M.B.B.S., and to be provided to bank at the time of deployment.

The Security Guard (Unarmed) should be mentally sound and possess good physique to perform all duties of Guard as listed in this document.

6. **General Guidelines:**

6.1 Security Guard deployed at ATMs and/or offices without arms. Security Guard (Unarmed) should perform their duty for eight hours per shift per location. Weekly off shall be provided after every six working days.

6.2 Security Guard (Unarmed) shall perform duty in proper uniform and should be in possession of photo-identity card provided to them by their employer i.e. the PSA.

6.3 The place of duty for the Security Guard (Unarmed) in the branch should be generally at the entrance of the Onsite/ Offsite ATM.

6.4 The duty of the Security Guard (Unarmed) is to keep a watch over persons visiting the ATM and against removal of bank's property by any unauthorized persons AND/OR to watch and guard the movement of cash from one place to another whether inside or outside the Bank.

7. Character & Antecedent Verification

Before deployment of Security Guard (Unarmed), the PSAs should arrange for verification of the antecedents of the guards by the police and such valid police verification certificate by the police should be submitted by the PSAs to the Bank before deployment of the guards.

8. Award of Contract:

The award of contract will be through GeM, however, successful bidder(s) is /are required to execute an Agreement, on a non-judicial stamp paper of applicable rate with Branch/office where security guards are deployed. The format for agreement is attached as Annexure I.

9. Payments to the PSAs

- Monthly payment to the PSAs will be made by the respective Branches/Offices where outsourced Security Guard (Unarmed) is deployed, adhering to the following:
 - a) PBG/ePBG should have been submitted to the RO or shall be made available on GeM after verification through NeSL and the Agreement executed with the branches.
 - b) Payment will be made to the PSA's Bank Account through online/NEFT/RTGS mode only as per approved rate on production of monthly bill every month.
 - c) The monthly bill should indicate monthly rate, number of Security Guard (Armed/Unarmed) deployed, total monthly charges and applicable GST separately and their Bank account & GST details. The bill should be submitted along with following documents: -
 - i) Monthly attendance record of guards deployed.
 - ii) Previous month's wage slip, ECR for EPF, CHS for ESI and guard's Bank Account statement/passbook copy indicating credit of net salary of previous month for the guards deployed.

The selected Service providers shall comply with all provisions of the Contract Labour (Employment & Regulation) Act and Rules made thereof as applicable to them. If it comes to notice of Bank that the Service providers is not complying with any of the Labour Laws, Banks reserves all rights to terminate the contract by giving 30 days' notice.

10. Format for Price Bid

Monthly Charges for providing One (01) Unarmed Security Guard

<u>Sl</u>	<u>Payment Details</u>	<u>Monthly Charges in R s / %</u>	<u>Security Guard without Arms</u>
			Area B
1	Basic plus VDA	_____Days	-
2	Employees Provident Fund (EPF)	-	-
3	Employees Deposit Linked Insurance (EDLI)		
4	Admn. Charges to PF and EDLI authority		
5	Employees State Insurance (ESI)		
6	Charges for Weekly Off	Four Days of (Basic +VDA+ EPF+EDLI+A dm.Chgs. to PF & ED LI +ESI)	
7	Any other Charges demanded by Bidder (Optional)	-	-
a	-	-	-
b	-	-	-
c	-	-	-
8	Sub Total (Sum of Sr.1 to 7)	-	-
9	Service Charge as a % of Sr.8 above (to be decided by the bidder)		
10	Total Cost per Head in (Sr No 8 +Sr No 9)	-	-
11	GST	Extra as applicable	

While filling price bid kindly consider the following points: -

i) Price Bid, strictly as per above format be filled and uploaded on GeM portal. The same price must be filled on GeM portal for display & L1 determination. Price bid will be rejected if any difference observed in displayed price on GeM & uploaded price bid.

ii) The charges mentioned from SI No. 1 to 4 are mandatory and as per prevalent acts and rules. SI 5 is mandatory only if applicable as per prevalent acts and rules. Not quoting any amount in these serials or quoting below the statutory minimum will render the submitted Price bid null and void.

iii) The total cost at Sr No 10 (Sum of Sr. No. 8 + Sum of Sr. No. 9) will be considered for deciding L1.

iv) The Basic & VDA (Sr. No. 1) should not be quoted less than the minimum wages fixed and revised from time to time, by the Ministry of Labor and Employment, Government of India for employment of Watch and ward staff. Where the Central and state Governments have fixed different rates of minimum wages, the rates whichever is higher will be applicable. The minimum rates of wages also include the wages for the weekly day of rest as per Govt. guidelines.

v) Employer's contribution of EPF shall be paid by the Bank as per rules.

vi) ESI only where applicable will be as per **applicable rates** will be calculated based on SI. No. 1 (Basic + VDA).

vii) GST on Total cost per head shall be paid extra as per extant Rules.

11. For further clarifications if any, you may contact the following email / address

rso.goa@unionbankofindia.bank.in

Address for Communication

-

The Regional Head
Regional Office, Goa
2nd Floor, LIC Building, EDC Complex,
Panjim, Goa :403001

Sign:

(Letter to the bank on the Supplier's letterhead)

-
-

To

The Regional Head
Regional Office, Goa
2nd Floor, LIC Building, EDC Complex,
Panjim, Goa :403001

Dear Sir,

Sub: Submission of Bid for deployment of Security Guards

With reference to your tender notice published on GEM Portal and having examined & understood the instructions, terms and conditions forming part of the tender document, we hereby submit our offer for providing Security Guards (Unarmed) Services as detailed in your above referred tender document.

1. I / We confirm that we have not been disqualified by any PSUs/PSB for deployment of Guards.
2. I / We further confirm that the offer is in conformity with the terms and conditions as mentioned in the tender document.
3. We also confirm that the offer shall remain valid for Three months from the last date for submission of the offer.
4. I / We hereby confirm that we have read the terms and conditions given in this tender document and agree to them.
5. I / We understand that the Bank is not bound to accept the offer either in part or in full and that the Bank has the right to reject the offer in full or in part without assigning any reason whatsoever.
6. I / We enclose herewith a proof of EMD (if applicable) for Rs. _____ only), details of the same are, as under:
Demand Draft/BG/Online Transaction UTR :
Date of DD/BG/Online Transaction :
Name of Issuing/paying Bank :
7. I / We agree that the decision of Union Bank of India in selection of service providers will be final and binding to me / us.
8. All the information furnished by me/us above here is correct to the best of my/our knowledge and belief.
9. I / We agree that I / We have no objection if enquiries are made about the work listed by me / us here in above and/or in the accompanying sheets.
10. I/We (Proprietor/ all partners) are not convicted or facing any criminal proceedings in Court/competent authority under Law of the land.
11. I / We have read the instructions as mentioned in tender document & also on GeM portal and I / We understand that if any false information is detected at a later date, any contract made between ourselves and Union Bank of India on the basis of the information given by me / us can be treated as invalid by the Bank and I / We will be solely responsible for the consequences.

Place.

Date.

Yours faithfully,

Authorized Signatories

(Name & Designation, seal of the firm)

-
(Letter to the bank on the Supplier's letterhead)

-
BIO – DATA OF Private Security Agency / FIRM

1. a) Name of the Firm :

b) Address :

c) Telephone Nos.

Office :

Residence :

Mobile :

Fax :

e-mail :

2. a) Whether Proprietary/Partnership/ Pvt. Ltd. / Public Ltd. :
(Certificate of Registration / Partnership Deed to
be enclosed).

b) Name of the Partners, Directors :

i)

ii)

c) Year of establishment :

3. a) Registration with concerned authorities at **Head Office Location:**

i) Income Tax (PAN, TAN) No. :

ii) GSTIN no. :

iii) EPF Regn. No. :

iv) ESI Regn. No. :

v) ESI sub code Regn. No. in _____ state :

vi) Shops & Establishments Act. :

vii) Private Security Regulation Act 2005/
PASARA :

Enclose all concerned certificates.

b) Address, Mobile/Tel. Nos. & e-mail ID of Offices/Branches in _____ and Nos. of Employees:

Name, Address & Tel. /Mobile Nos. of Centers	e-mail ID	Nos. of Employees at each Center

4. Names of Bankers with address & telephone numbers:

i)

ii)

5. Furnish copies of **Audited Balance Sheet** and **Profit & Loss A/C** for the last 3 years i.e. F.Y. 2023-24, 2024-25, 2025-26.

6. **Empaneled / Contract** with Govt. / Public Sector Banks / Central/State PSU - (Certificates/Letters of Registration to be enclosed)

Name of the Organization	Year since empaneled / Contracted

7. Give details, if at present involved in **litigation** in similar type of contracts:

Sr. No.	Name of Project	Name of Employer	Nature of work	Work order dated	Date of completion of work	Value Rs.

8. Details of civil suit, if any, that arose during _____ :

execution of contract in the past 5 years.

9. Specify maximum value of single value :
project executed during the last three years.

10. Name & relation, if any, with the staff member :
of Union Bank of India.

11. Details of **Work Executed** during the last **5 years**:

Type of work	Name of Client	Nature of work (in brief)	Location	Value Rs.	Duration of actual deployment		If work left incomplete or terminated (give reasons)

Note: Enclose copies of Work Orders/Client Certificate, TDS Certificate, satisfactory Completion Certificate from Clients.

12. Contact details of responsible persons in Local Office

Name	Designation	Mobile No.	e-mail ID
-	-	-	-

13. **Turnover** in last **3 years (Rs.in lacs)**:

Sr. No.	Year	Turnover	GST Paid
1			
2			

Note: Copies of Tax Returns & Assessment Orders, for each year to be enclosed.

14. Details of Training facility

- i. Address of training facility:
- ii. If tie up arrangement, details of the same:
- iii. Whether facility for firing practice available:

NOTE:

- i. **Without copies** of Documents, Certificates of Registration, Performance Certificates, Work-Orders, Details, Credentials, Supporting Documents, etc., duly stamped and signed, your **application is liable to be rejected without assigning any reason.**
- ii. Details to be filled up in all columns.
- iii. Attach additional sheet wherever required.

Affidavit (to be submitted on non-judicial stamp paper (of value as per Government norms) and should be duly signed by the Director/s /all Partners/ Proprietor)

I (Name of Director/Partners/ **P**
roprietor), s/o Resident of ...

(Permanent Address) is the Owner/Partner/Director of Private Security Agency M/S.....

The Firm/Company is registered under Private Security Agencies (Regulation) Act 2005 under state.....
 and the license is valid in area.....
 till date.....
 (Copy of PSARA license attached). The firm/Company **is in/Not in** (tick whichever is applicable) possession of a valid Labour License for provision of watch and ward Casual/Contract Labour from the office of the concerned Labour department in accordance with the Government orders on the subject.

On behalf of (Name of service provider) M/s , I undertake the following: -

1. That the payments will be made to all the guards deployed at the Branches of Union Bank of India as

per minimum wages as applicable to the area and as revised from time to time by the Labour department, and as per minimum wages Act 1948.

2. That Employee's provident fund (EMPLOYER AS WELL AS EMPLOYEE contribution) will be deposited to the concerned authorities as per employees' provident and miscellaneous provision act 1952 in respect of our guards deployed at the branches of Union Bank of India.
3. That ESI contribution, if applicable (on the BASIC+VDA+ALLOWANCES) will be deposited to the concerned authorities as per employees' State insurance act 1948 in respect of our guards deployed at the branches of Union Bank of India.
4. That the bonus will be paid to all our guards as per bonus act 1965 in respect of guards deployed at the branches of Union Bank of India.
5. That the gratuity will be paid to the security guards deployed at the branches of Union Bank of India as and when they become eligible for such payment under the relevant law.
6. That all the guidelines will be followed as stipulated from time to time by Ministry of Labour and Employment.
7. That the firm will be solely responsible for any Noncompliance to Minimum wages Act 1948 and other Labour laws and rules applicable in the state of Goa.
8. That the firm will be solely responsible for any dispute arising out of the appointment/termination of services of the armed guards deployed in the branches of our bank.

**Signature of Director/Partners/Proprietor
With name and Seal**

Date:
Place:

REFERENCE SITE DETAILS

Name of the Client	-
Address of Office from where feedback is to be sought.	-

Name, designation of contact person with telephone No. and e-mail id	Name: Designation: Contact No.: E-mail id:
No. of Security Guards deployed in last 3 years (Ref. No., date of order and quantity)	-

Reference site details of THREE clients be given in above mentioned format for which additional sheet may be used.

Note:-

Please provide all data as mentioned above, including contact details. Email id should be from firm's domain only. Emails from gmail, rediffmail and other similar domains will not be accepted under any circumstances.

AUTHORISED SIGNATORY

-

FORMAT FOR AGREEMENT

PROVIDING/OBTAINING SECURITY GUARD (UN ARMED) SERVICES

This Agreement is entered at _____ (Place) on the ____ day of _____
 _____ between Union Bank of India, _____ (Branch/Office) _____ at _____
 _____ (Address) represented by its attorney Shri _____
 _____ hereinafter referred to as the First Party

AND

The Private Security Agency(PSA) M/s. _____ represented by its _____
 _____ (designation), Mr./Mrs./Ms. _____ (name) and having its office at _____
 _____ (address) hereinafter referred to as the PSA which expression shall wherever the
 context so admits, means and includes his legal representatives, successors & assignees as the Second Party.

Whereas the First Party requires the services of a Second Party for safeguarding its properties and assets.

Whereas the PSA, providing security guards(Unarmed) services has agreed to provide Security Guards (Unarmed) (Strike out whichever is not applicable), hereinafter referred to as "PSA's Employees" to the First Party as per the First Party's requirements and terms & conditions of the RFP.

Whereas the PSA and the First Party have agreed to enter into a service contract for a period of _____ months w.e.f. _____ till _____ which shall be deemed to be automatically terminated thereafter unless renewed by the First party for the purpose of obtaining security guards services on the terms and conditions as mentioned hereunder.

Now therefore this agreement witnesseth as under:

1. The PSA declares that the PSA is in possession of the valid licence issued under Section 7 of the Private Security Agencies (Regulation) Act 2005 and the PSA further undertakes that the licence will be renewed from time to time and will be valid during the entire period of the Agreement, failing which this agreement shall stand automatically cancelled and the First Party shall not make any payment.

2. PSA shall ensure that ____ No. of Armed Guards/Security Guards possessing the required skill and training shall be deployed at the branch/office/ATM (Strike out whichever is not applicable). PSA's Employees shall not be more than 55 years of age at the time of first deployment.

3. The PSA hereby undertakes to abide by the requirements of eligibility criteria and physical standards for the PSA's employees and their training as prescribed in the Private Security Agencies (Regulation) Act 2005, the Rules framed there under and the amendments there to.

4. The PSA shall ensure that the PSA and their employees deployed with the first party shall comply with all obligations, conditions and restrictions regarding uniform, photo identity card, etc., stipulated in the Private Security Agencies (Regulation) Act 2005 and Rules framed there under.

5. If the State Law requires the registration of the PSA with the Welfare Board of Security Guards or any such other Board constituted under the State law, completion of such registration shall be ensured by the PSA before deploying their employees with the first party.

6. The PSA agrees that the duty of the deployed security guard (Un armed) is to keep a watch over persons visiting the branch/office or ATM for the purpose of safety & security and guard against infiltration and against removal of bank's property by any unauthorized person AND/OR to watch and guard as above the movement of cash from one place to another whether inside or outside the Bank.

7. The PSA shall ensure that the PSA's Employees shall be conversant with the use of Fire Extinguishers and shall take necessary action in case of activation of Fire Alarm System or in case of a fire in the branch/office.

8. PSA shall provide the names of PSA's Employees to the branch/office before their deployment. The PSA shall furnish the names, permanent & local addresses of the PSA's Employees deployed at First Party's premises from time to time along with their latest photographs, thumb impression, signatures & Aadhaar Identify Proofs.

9. The PSA shall ensure that the PSA's Employees function under general directions of Branch Manager / Authorised Official and perform duty according to the duties given in the tender document to this Agreement. The PSA shall also ensure that the PSA's Employees deployed at branch/office/ATM have read & understood their duties.

10. The PSA will provide PSA's Employees with uniform (Summer/Winter), caps, raincoats, torches and other accessories (Photo I-Card, name Tag, baton, whistle etc) initially and replace the same periodically as and when required. At no point of time the uniform or its liveries should be faded/untidy/torn.
11. Before deployment of their employees, the PSA shall arrange for verification of antecedents of all the PSA's Employees by the police and such Police verification Certificates shall be submitted to the First Party before deployment of Security Guards or their subsequent relievers.
12. PSA's Employees shall be medically fit, mentally sound and possess good physique and not be suffering from any contagious / major diseases. Wherever required by the First Party, the PSA will provide literate PSA's Employees to perform the assigned duty efficiently.
13. The PSA will change the PSA's Employee immediately on instructions from the First Party if the performance/behavior of that particular PSA's Employee is not acceptable or if found physically/medically unfit and the decision of the First Party will be final in this regard.
14. The PSA shall ensure that the PSA's Employees shall not accept any eatables, tea, coffee, tobacco etc., from strangers. The PSA's Employees shall not consume tobacco, alcohol or other intoxicants or be found in an inebriated state or smoking during the duty hours.
15. A PSA shall ensure that no familiarity develops between the PSA's Employees and the First Party staff. Further, the PSA shall ensure that the PSA's Employees do not indulge in any activities including money transactions, which may tarnish the image of the First Party.
16. A Security Supervisor will be detailed by the PSA. Such security supervisor shall report to the concerned branch/officer in-charge/official at least once a week for the purpose of briefing /debriefing. He must carry out checking of guards wherever deployed for alertness on regular basis as instructed by Branch/Office. First party will not be liable for any separate payments for this arrangement and the cost of such supervisory arrangement shall be borne entirely by the PSA at its own end.
17. The PSA shall ensure that at no point of time during the prescribed duty hours, the PSA's Employee will be on leave or absent from his place of duty without a reliever and that they shall remain alert during their working hours to prevent theft/pilferage and any other untoward incidents.
18. PSA shall maintain duty register for each PSA's Employees and get the register checked by the Bank's branch/office daily, along with timings. In case a PSA's Employee is found absent from the place of his duty, the pro-rata payment for the days of absence will be deducted from the payment due to the PSA.
19. The PSA shall maintain up to-date record of PSA's Employees as per the Shops & Establishment Act and will discharge all obligations under various Labour Laws viz. EPF Act, ESI Act, Gratuity Act, Bonus Act, Workmen's Compensation Act, Contract Labour (Regulation & Abolition Act), etc or under any other State/Union Legislation in respect of PSA's Employees and shall produce these records for verification as when demanded by the First Party.
20. The PSA shall be responsible for all acts of Commission and/or Omissions by its employees leading to loss and/or damage to First Party's employees and/or third Parties and shall meet all liabilities arising out

of such Omissions and/or Commissions.

21. PSA shall alone plan, relieve, decide and be responsible for the leave or absence of the PSA's Employees on any grounds and First party shall not in any way be responsible for sanction of leave, etc. to the PSA's Employees.

22. PSA shall maintain proper records /details of the PSA's Employees deployed in the branch/office/ATM of First Party. It shall submit monthly bills to the branch/office by 5th of each month giving details of the PSA's Employees deployed and the payment claimed for each of them. All payments under this agreement shall be made to the PSA by the Bank's branch/office, where the PSA's Employees are deployed on a monthly basis by a crossed cheque/online credit in favour of PSA within four working days of receipt of the relevant bill from the PSA. However, in case of any discrepancy in the bill detected by the First Party, the payment will be released to the PSA within four working days from the date of resolving the discrepancy by the PSA.

23. PSA shall be fully and absolutely responsible for the payment of salary and other statutory dues for/to PSA's Employees like salary/wages, bonus, arrears, overtime, EPF & ESI contributions employment/terminal benefit, compensation or other claims of whatsoever nature to PSA's Employees and First party will not undertake any liability in relation to such matters.

24. The PSA's Employees shall not claim any employment relationship with First party under any circumstances. The PSA shall obtain written undertaking from each of the PSA's employees deployed with the First Party that he is a permanent employee of the PSA and the written undertaking in original shall be given to the First Party's Office, where he is deployed.

25. PSA hereby undertakes to ensure payment of wages to its PSA's Employees in compliance with Minimum Wages Act and other relevant statutes in force and modified/amended or revised from time to time as per enactments of Central/State Governments.

26. The PSA hereby undertakes further that additional/excess payment over the contracted amount, which may arise due to extraneous reasons during the currency of this agreement, shall be borne by the PSA alone and the First Party shall not be liable to pay any excess amount.

27. The PSA shall pay the monthly wages to PSA's Employees deployed with the First Party by crediting to the Savings Bank Account of the PSA's Employees with any bank.

28. PSA shall submit printed receipts for all the payments received from First Party. The PSA shall also furnish the proof of having paid the wages to the PSA's Employees engaged by them within one week of the disbursement of the wages to them and proof of having paid the statutory dues to the concerned authorities on a monthly basis. Non-payment of monthly wages by the PSA to the PSA's employee deployed with First Party will make this contract null and void and will result in termination of the deployment of PSA's employees with the First Party with immediate effect and the First Party will not be required to make any payment to the PSA thereafter.

29. First Party shall not make any direct payment of whatsoever nature to the PSA's Employees. All payment payable by First Party in connection with or arising out of this agreement shall be made only to PSA and not to the PSA's Employees.

30. PSA shall also ensure that the PSA's Employees do have their own arrangements for their food, beverage

rages and refreshments.

31. In case of any injury/death of any staff member of First Party or a public member because of firing of weapon of the PSA's Employees for any reason, PSA shall be liable to pay compensation as deemed necessary and become payable to the injured/deceased or their legal claimants. All legal proceedings and expenses towards such incidents/accidents will be borne by the PSA without involving the first party at any stage.

32. In case of any mishap of whatsoever nature (minor / major / fatal including death during the course of their duty) sustained by PSA's Employees, the responsibility for meeting the medical/hospitalization expenses or of granting compensation, if any, on that count will be that of the PSA and not of the First Party. If for any reason, compensations, costs etc., are paid by the First Party, the same shall be reimbursed by the PSA to First Party without any demur, including interest at ruling rate till settlement and such settlement shall be made by the PSA within one month from the date of Demand by the First Party and upon failure of the PSA to do so, the First Party shall have the right to adjust the monthly bills payable to the PSA towards the amounts payable by the PSA till the entire dues are paid/settled off.

33. In the event of theft, pilferage, damage to property of the First Party or any other loss, the First Party shall report the matter to the local police first. The PSA agrees that in case of any loss of cash/materials/other properties of the bank, which may arise directly or indirectly due to absence or dereliction of duty or inattentiveness or negligence or collusion of the PSA's employee, such loss will be made good by the PSA and all liabilities arising out of such incidents will be fully met by the PSA. If the inquiry reports of the First Party and the PSA are conflicting on this point, it is agreed between the parties that the First Party's report shall prevail and be final. Such quantum of loss assessed and payable by the PSA shall be paid to First Party within a month of demand and upon failure of the PSA to do so, the First Party, without prejudice to other recovery measures either through Court of Law or otherwise, shall have the right to invoke the Bank Guarantee in favour of the First Party submitted by the PSA or to adjust the monthly bills payable by the First Party to the PSA towards the amounts payable by the PSA till the entire dues are paid/settled off.

34. Neither the PSA nor any of the PSA's Employees will have any claim against the First Party for any liability arising out of any commission / omissions caused by the PSA's Employees while on duty.

35. The PSA's Employees deployed for the security of the branch/office/ATM as per terms of this Agreement shall always be treated as employees of the PSA only and will not have any right to seek employment in the services of the First Party. There shall be no relationship whatsoever between the First Party and the PSA's Employees. PSA shall also make it clear to PSA's Employees that they shall not, under any circumstances, claim any right of employment from First Party and the PSA shall continue to be their employer.

36. In return for fixed sum/rates, the PSA shall at its own risk & cost provide services of PSA's Employees as per the requirement of the First Party purely on Contractual basis.

37. PSA undertakes to submit a copy of licence from the Ministry of Labour, Govt. of India, or exemption certificate from the State Government, for providing security guard services in offices/ATMs of First Party before deploying their employees with the First Party.

38. PSA states and admits explicitly that the work assigned by First Party to it is not perennial in nature and the First Party has the right to terminate the assigned work, if in its assessment and opinion, the need for the assigned work ceases to exist. The assignment/engagement is well defined, quantified, time-bound and specified by the First Party to PSA and, in turn, by the PSA to PSA's Employees.

39. PSA shall ensure to submit annual returns to various Authorities and also ensure compliance of all the

e applicable laws, rules and regulations for which PSA shall be solely responsible.

40. PSA hereby agrees to indemnify and keep First Party indemnified against any loss, damage, compensation, cost etc., that First Party might be required to incur/pay arising out of litigation, non-compliance or breach of statute/s, regulations etc., by the PSA or even otherwise.

41. The First Party as well as the Reserve Bank of India shall have the right to access all books, records and information relevant to the PSA's employees deployed with the First Party and shall have the right to cause an inspection on the PSA's office & training infrastructure and audit the books & records as relevant to the services provided to the First Party.

42. The PSA shall preserve all the data and documents pertaining to their employees deployed with the First Party for not less than three years and shall make them available to the First Party, if and when demanded.

43. The PSA shall not sub-contract the armed guards' services provided to the First Party to any third party without the prior approval of the First party.

44. This Agreement can be terminated by either Party at one month's notice in writing. However, if the First Party terminates this Agreement/Contract due to the PSA violating any of the terms of this Agreement or due to non-performance of the terms of this Agreement or due to any negligence on the part of the PSA or PSA's Employees, the First Party shall not be required to give any notice and the Agreement shall stand terminated on the date following the day on which the PSA receives, from the First Party, the intimation about such violation or non-performance or negligence.

45. In continuation of the Clause 44 above, if any of the terms / clauses of this agreement remains violated or non-rectified or not adhered to by the PSA for more than one month even after due notice of such violation or non-adherence, the PSA agrees that apart from terminating the Contract, the First Party will have the right to blacklist the PSA for the next five years and to invoke the Performance Bank Guarantee and forfeit the entire amount covered by the Performance Bank Guarantee as penalty for non-adherence to this agreement / contract.

46. In consideration of the services as stated herein above, First Party agrees to make payment @ of Rs. _____ for each Armed Guard / Rs. _____ for each Security Guard (excluding taxes) and after deducting TDS (if applicable) to the PSA for each completed month of services or pro-rata thereof.

We the above noted parties have signed this deed of agreement after having understood the contents of this deed on the date and place mentioned above.

(Signature)

Authorised Signatory

(Signature)

Authorised Signatory

For BANK (with seal)

For Private Security Agency (with seal)

-

-

(First Party)

(Second Party)

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Duties & General Conduct of Unarmed Guards:

1. Unarmed Guard shall perform duty for eight hours on all working days and shall report to the Site 15-30 minutes prior to opening of the branch/shift hours.
2. On start/completion of duty at the site, the Unarmed Guard shall inform the Bank's Branch Manager/Authorized official for taking over/completing the duty and about the condition of the site.
3. Unarmed Guard shall perform duty only in prescribed uniform provided to him by his employer i.e. PSA.
4. Unarmed Guard shall check and inform of any damage, accident, pilferages, incident, fire/arson, etc., as also, any defect/malfunctioning of ATM, electrical equipment's, lights, AC, etc. to Branch Manager/Authorized Bank official.
5. Unarmed Guard while performing duty at the ATM /office shall keep watch on persons visiting the branch/office and inform Branch Manager/Authorized Officer about any suspicious movement/activity.
6. Unarmed Guard is to keep a watch over persons visiting the ATM/office for the purpose of safety & security and guard against infiltration and against removal of bank's property by any unauthorized person AND/OR to watch and guard as above the movement of cash from one place to another whether inside or outside the Bank.
7. At office site, Unarmed Guard on duty should allow access to ATM card holders only and permit one ATM card holder inside the ATM at one time.
8. Unarmed Guard should ensure that the ATM Entrance/office Main Gate is not obscured/blocked by parking vehicles etc. and that parking of Vehicles inside the premises is systematic and no vehicle is parked at unwanted areas/places.
9. In case anybody leaves behind any bag, suspicious item, etc., Unarmed Guard, on duty, should immediately inform Branch Manager, Security Officer or Police.
10. Unarmed Guard should interact with customers/office visitors/staff with respect and politeness.
11. Unarmed Guard should not leave the place of duty unless properly relieved during duty hours and after duty hours (at offices).

12. Unarmed Guard shall check the Electronic Alarm System, CCTV and Fire Alarm System fitted at the ATM site daily and if these systems are found defective at any point of time, he shall report the matter to Branch Manager/Authorized official/AMC Firm for rectification of defects.
13. Unarmed Guard shall be conversant with the use of Fire Extinguishers and shall take necessary action in case of activation of Fire Alarm System or in case of a fire in the ATM/office.
14. Unarmed Guard shall escort cash remittances, as and when required by the branch.
15. Unarmed Guard shall perform security related duties only and shall not get involved in any other work or banking related operations or any other activity at the Branch/Office.
16. At Office location Unarmed Guard shall ensure that there is no misuse of property/equipment by anyone in the premises specially, canteen staff, workers of agencies, etc. and inform authorized official.
17. At Office location Unarmed Guard shall ensure that only desired electrical lights in the periphery and inside are kept on during nighttime and put off during daytime.
18. Unarmed Guard shall not accept any eatables, tea, coffee, tobacco etc., from strangers. The PSA's Employees shall not take any alcohol or intoxicants or be found in an inebriated state or smoke during the duty hours.
19. Unarmed guard shall not use his firearm on any occasion except as his right to his private defence as provided u/s 34 to 44 of the Bhartiya Nyaya Sanhita 2023 (where applicable).

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Format for Performance Bank Guarantee

Guarantee No.: _____

Date: _____

In consideration of the Union Bank of India, Regional Office, having its Office at
..... (Hereinafter referred to as the 'First Party' which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators and assigns) having selected and intimated M/s.
..... (Name of PSA) having its registered office at
Name & Address of Vendors H.O.) (Hereinafter referred to as the "Second Party" which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), by means of letter No. dated for providing the services of Security Guards and Armed Guards at its ATMs / Branches, the Second Party has agreed to furnish a Bank Guarantee valued at Rs. (Rupees only) to keep the "First Party" indemnified from time to time for any breach of terms of the "Agreement" the Second Party is to enter with any of the branches/offices of the First Party.

We (Name and Address of Bank) (hereinafter referred to as the 'Bank' which expression shall, unless repugnant to the context or meaning thereof, include the successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the "First Party", on demand any and all moneys payable by the "Second Party" to the extent of Rs. (Rupees only) as aforesaid at any time up to (Date), without any demur, reservation, contest, recourse or protest and without any reference to the "Second Party". Any such demand made by the "First Party" on the 'Bank' shall be conclusive and binding notwithstanding any difference between the "First Party" and "Second Party" or any dispute pending before any court, tribunal or any authority. The Bank undertakes not to revoke this guarantee during its currency without previous consent of the "First Party" and further agrees that the guarantee herein contained shall continue to be enforceable till the "First Party" discharges this guarantee. The Bank shall not be released of its obligations under these presents by any exercise by the "First Party" or by any other matter or thing whatsoever which under law would, but for this provision, have the effect of relieving the Bank.

We the bank further agree that the "First Party" shall have full liberty, without our consent and without affecting in any manner our obligation hereunder to vary any of the terms and conditions of the Agreement entered into between the "First Party" and the "Second Party" for providing security guards for the "First Party" or to extend time of performance of its obligation by the "Second Party" from time to time or to postpone/forbear for any time or from time to time any of the powers exercisable by the "First Party" against the "Second Party" and to forbear or enforce any of the terms and conditions relating to the said Agreement and shall not be relieved from our liability by reason of any such variation or extension being granted to the "Second Party" or for any forbearance, act or omission on the part of "First Party" or any indulgence by "First Party" to the "Second Party" or by any such matter or thing whatsoever which under the law relating to sureties would but for this provisions have effect of so relieving us.

The Bank also agrees that the "First Party" at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the "Second Party" and notwithstanding any security or other guarantee that the "First Party" may have in relation to the "Second Party" liabilities.

The Bank hereby expressly agrees that it shall not require any proof in addition to the written demand from the "First Party", made in any format, raised at the abovementioned address of the Bank, in order to make the said payment to the "First Party".

The Bank hereby agrees and acknowledges that the "First Party" shall have a right to invoke this Guarantee either in part or in full, as it may deem fit.

The Bank acknowledges that this guarantee is not personal to the "First Party" and may be assigned, in whole or in part, (whether absolutely or by way of security) by the "First Party" to any entity to whom it is entitled to assign its rights and obligations under the Guarantee.

This Guarantee shall not be affected in any manner by reason of merger, amalgamation, restructuring, liquidation, winding up, dissolution or any other change in the constitution of the Guarantor Bank.

Notwithstanding anything contained herein:

- a) Our liability under this Bank Guarantee shall not exceed Rs. _____ (Rupees _____ only)
- b) This Bank guarantee shall be valid up from _____ (Date) to _____ (Date).
- c) We are liable to pay the guaranteed amount or any part thereof under _____ this Bank Guarantee only and only if the First Party serves upon us a written claim or demand on or before _____ (Date).
- d) At the end of the claim period that is on or after _____ (Date), all the right of "First Party" under this guarantee shall stand extinguished and we shall be discharged from all liabilities under this guarantee.

Witness

Dated this Day of _____ (month, year) at (Place).

Signature.....

Signature.....

Name

Name.....

Official Address

Designation with Bank stamp

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9. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

10. **Buyer Added Bid Specific SLA**

Text Clause(s)

Additional Termes & Conditions (ATC)

Providing Services of Outsourced Security Guards (Unarmed) in the Branches/Offices/ATMs of Union Bank of India under Regional Office, Goa

1. SCOPE OF THE WORK: -

Union Bank of India, a leading public sector bank, having its Central Office situated at Nariman Point, M

umbai (herein after referred as 'Bank' or 'the Bank') has its network of branches and ATMs situated across length and breadth of the country. The bank is having structured Administrative Offices situated in major cities across the country and are called Zonal / Regional offices, which provide administrative guidance and support to the branches in their jurisdiction.

Present Notice Inviting Tender is for estimated deployment of 08 Unarmed Security Guards in various branches in North & South districts under Regional Office, Goa. However, the exact number of guards may change as per bank guidelines, approval of competent authority and requirements of the bank.

2. Terms & Conditions:

- 2.1. Deployment of Unarmed Security Guards is to be completed within a period of 30 days commencing from the date of acceptance of the offer. If the PSA fails to deploy Security Guards within given time, the order shall be cancelled.
- 2.2. Formats of documents mentioned in this RFP are final and not open to any modification.
- 2.3. If Bank changes/modifies any guidelines regarding deployment of security guards in branches, such guidelines will prevail and supersede the terms of contract arising out of this RFP.
- 2.4. Bank reserves all rights to either reduce or increase the number of security guards to be deployed in bank/branches as per their requirements. The Bank reserves the right to alter the order/orders.

3. Earnest Money Deposit:

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3.1 The Service provider / Bidder shall furnish, as part of its bid, Earnest Money Deposit (EMD) as mentioned on GeM in the form of a Demand Draft in favor of Union Bank of India payable at Goa / through online mode or in form of Bank Guarantee (issued by any Bank other than Union Bank of India). Bank details for remitting by online mode is given here below. Hard copy of the payment proof (UTR No. etc) must be enclosed with technical bid. Bidders claiming exemption from submission of EMD must substantiate their eligibility for exemption with relevant documents. If submitted by way of BG, the same must be valid for 135 days from date of submission of technical bid. BG/DD wherever applicable, must reach to our office before closing date & time of tender submission.

Account Name	:	Inward RTGS
Bank Name	:	Union Bank of India
Account Number	:	561301980050000
IFSC code	:	UBIN0556131

3.2 The successful Bidders' EMD will be discharged upon the Bidders' signing the contract & furnishing the Performance Bank Guarantee. Unsuccessful Bidders will be intimated the reasons for their not being qualified through GeM and EMD deposited by them, if any, will be returned in due course.

3.3 The EMD may be forfeited:

- i) If a Bidder withdraws/modifies its bid during the period of bid validity; or in the case of a successful Bidder, if the Bidder fails:
 - a) To execute the contract within the stipulated time, or
 - b) To furnish Performance Bank Guarantee within the stipulated time.
- ii) At any stage of evaluation, if a bidder is found to have given false declaration / certification / information in Technical Bid, Bank may at its discretion forfeit EMD and reject the bid.

4. ELIGIBILITY CRITERIA FOR SERVICE PROVIDERS

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4.1 Service providers shall submit all relevant proof documents along with the tender. Bidders not conforming to any of the parameters as on last date for submission of bids will not qualify for short listing. Following is the list of eligibility criteria for vendors/security agencies: -

- 4.1.1 Service providers / Bidders should be a registered company / registered partnership firm / proprietary firm for providing security guards' services since last five years or more. (Proof document- valid Registration Certificate of RoC for Registered companies/registered partnership deed for partnership firm/registration certificate or any other document substantiating age of firm, for proprietary firm).
- 4.1.2 Service providers / Bidders should have obtained a license in accordance with section 4 & 7 of the Private Security Regulation Act 2005 in the state, where the act has been implemented (Proof documents- Valid PSARA License for the State of Goa). The license should be valid for the entire state. The license should remain valid through the period of contract. At any point of time, if the PSARA license remains invalid for more than 3 months, Bank reserves all rights to cancel the contract. Service providers / Bidders who do not fall under the ambit of PSARA License are required to submit necessary supporting document to prove that the Service providers / Bidders is Government agency/eligible for exemption as per official Government gazette/official document.
- 4.1.3 PSA / Bidders should have at least one of its own offices in the state of Goa. Such office must have a valid Registration under Shops & Establishments Act applicable in the State. (Proof document- valid Registration Certificate for the offices in the State of Goa).
- 4.1.4 Service providers / Bidders should have valid Registration with ESI Corporation under ESI Act and should have been allotted with a code number by the ESI Corporation (Proof Document - valid Registration Certificate with Code number from ESI Corporation and Sub code allotted in the State of Goa).
- 4.1.5 Service providers / Bidders should have a valid Registration with EPFO under EPF & Miscellaneous Provisions Act 1952 and should have been allotted Registration number (Proof document- valid Registration Certificate with Registration number of EPFO)

- 4.1.6 Service providers / Bidders should have Income Tax PAN and should be submitting IT returns for last three years (Proof documents – Copy of valid PAN Card and IT Return Acknowledgement copy for last three years).
- 4.1.7 Service providers / Bidders should have a Registration for GST and should have been allotted with Registration number (Proof document- Valid Registration Certificate with GSTIN).
- 4.1.8 Service providers / Bidders should have minimum five years' experience of providing Security Guard's services to Public/Private Sector banks / Central PSU / State PSU. (Proof documents- work orders from banks substantiating providing services since last five years). **Exemptions to eligible MSEs as per govt guidelines will be applicable on production of valid documents.**
- 4.1.9 Service providers / Bidders should have average annual financial turnover of Rs 26 Lakh during the last three years and should be in profit in the last three financial years (proof documents - Audited Balance sheet and P & L statement for each of the last three financial years).
- 4.1.10 Service providers / Bidders should have their own infrastructure for training of their Security guards. [Otherwise, tie-up arrangement with PSARA registered training establishments, provided if, PSARA applicable in the State permits such tie-up arrangement for training] (Proof documents- Registration Certificate of training establishment under Shops and Establishments Act for own training facility/documents substantiating tie-up arrangement with PSARA registered training establishment).
- 4.1.11 Service providers / Bidders should have at least one office in the area under jurisdiction in the state of Goa. The office should be equipped with telephone & email facility and the office should be physically manned during the office hours on all working days. The office should be in existence before the date of publishing of this tender. (Proof Documents – Registration of the office under Shops & Establishment Act applicable in the State, latest telephone bill, muster roll/attendance record of the office staff).
- 4.1.12 Service providers / Bidders should have credible supervisory infrastructure and network in the state (Proof Documents – Muster Roll/Attendance record of supervisory staff with designation, placed with the offices in the State).
- 4.1.13 Service providers / Bidders shall not be owned or controlled by any director or officer/employee of Union Bank of India or their relatives having the same meaning as assigned under Section 6 of the Companies Act 1956 (Proof document- Self declaration by the Director/Partner/ proprietor substantiating the criteria).

- 4.1.14 Service providers / Bidders should be complying with Minimum Wages Act 1948 and amendments there to (Proof documents – Copies of Salary slips for the month of March 2026, April 2026 & May 2026 issued to Security Guards (Unarmed) deployed in area A, B & C of any principal employer).
- 4.1.15 Service providers / Bidders should be remitting EPF contributions on-line (Proof documents – Copies of Electronic Challan-Cum-Return (ECR) for the month of March 2026, April 2026 & May 2026 for same Security Guards (Unarmed) for whom salary slips are submitted as mentioned above).
- 4.1.16 Service providers / Bidders should be remitting ESI contributions on-line (Proof documents – Copies of electronic Contribution History Sheet (CHS) for the month of March 2026, April 2026 & May 2026 for same Security Guards (Unarmed) for whom salary slips are submitted as mentioned above).
- 4.1.17 Service providers / Bidders should be remitting net salary to security guards' Bank Account (Proof documents – Copy of security guards Bank Account passbook/statement indicating credit of the net salary for the months of March 2026, April 2026 & May 2026 for same Security Guards (Unarmed) for whom salary slips are submitted as mentioned above).
- 4.1.18 If the Director/Partner/Proprietor of the Service providers / Bidders is convicted by any Court/Competent authority OR facing criminal proceedings under the law of the land, Bank reserves all rights to reject offer from such Service providers / Bidders. Affidavit in this regard is to be submitted by the Director/Partner/Proprietor as per given format. The same should be signed by Director/ all Partners/ Proprietor only. Failure to submit the affidavit as per given format will disqualify the bid.

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5. QUALITATIVE REQUIREMENTS (QR) FOR UNARMED SECURITY GUARDS

The following guidelines shall be adhered to while outsourcing Security Guards (Unarmed) through the contracted Service providers / Bidders for Branches:

- a. Security Guard (UnArmed) should preferably be an ex-serviceman / CAPF personnel. In case of normal Civilian Guard should be of sound health. Their medical fitness will be considered as per medical fitness certificate from Registered Medical Practitioners with qualification not less than M.B.B.S., and to be provided to bank at the time of deployment.
- b. Age of the Security Guard (Unarmed) at the time of first deployment should not be above 55 years.

c. Security Guard (UnArmed) should have been released from his parent service in medical category SHAPE-I or equivalent and be medically fit in all respects at the time of deployment. Their medical fitness will be considered as per medical fitness certificate from Registered Medical Practitioners with qualification not less than M.B.B.S., and to be provided to bank at the time of deployment.

The Security Guard (Unarmed) should be mentally sound and possess good physique to perform all duties of Guard as listed in this document.

6. General Guidelines:

6.1 Security Guard deployed at ATMs and/or offices without arms. Security Guard (Unarmed) should perform their duty for eight hours per shift per location. Weekly off shall be provided after every six working days.

6.2 Security Guard (Unarmed) shall perform duty in proper uniform and should be in possession of photo-identity card provided to them by their employer i.e. the PSA.

6.3 The place of duty for the Security Guard (Unarmed) in the branch should be generally at the entrance of the Onsite/ Offsite ATM.

6.4 The duty of the Security Guard (Unarmed) is to keep a watch over persons visiting the ATM and against removal of bank's property by any unauthorized persons AND/OR to watch and guard the movement of cash from one place to another whether inside or outside the Bank.

7. Character & Antecedent Verification

Before deployment of Security Guard (Unarmed), the PSAs should arrange for verification of the antecedents of the guards by the police and such valid police verification certificate by the police should be submitted by the PSAs to the Bank before deployment of the guards.

8. Award of Contract:

The award of contract will be through GeM, however, successful bidder(s) is /are required to execute an Agreement, on a non-judicial stamp paper of applicable rate with Branch/office where security guards are deployed. The format for agreement is attached as Annexure I.

9. Payments to the PSAs

Monthly payment to the PSAs will be made by the respective Branches/Offices where outsourced Security Guard (Unarmed) is deployed, adhering to the following:

- a) PBG/ePBG should have been submitted to the RO or shall be made available on GeM after verification through NeSL and the Agreement executed with the branches.
- b) Payment will be made to the PSA's Bank Account through online/NEFT/RTGS mode only as per approved rate on production of monthly bill every month.
- c) The monthly bill should indicate monthly rate, number of Security Guard (Armed/Unarmed) deployed, total monthly charges and applicable GST separately and their Bank account & GST details. The bill should be submitted along with following documents: -
- i) Monthly attendance record of guards deployed.
- ii) Previous month's wage slip, ECR for EPF, CHS for ESI and guard's Bank Account statement/passbook copy indicating credit of net salary of previous month for the guards deployed.

The selected Service providers shall comply with all provisions of the Contract Labour (Employment & Regulation) Act and Rules made thereof as applicable to them. If it comes to notice of Bank that the Service providers is not complying with any of the Labour Laws, Banks reserves all rights to terminate the contract by giving 30 days' notice.

10. Format for Price Bid

Monthly Charges for providing One (01) Unarmed Security Guard

-

<u>Sl</u>	<u>Payment Details</u>	<u>Monthly Charges in Rs / %</u>	<u>Security Guard without Arms</u>
			Area B
1	Basic plus VDA	_____ Days	-
2	Employees Provident Fund (EPF)	-	-
3	Employees Deposit Linked Insurance (EDLI)		
4	Admn. Charges to PF and EDLI authority		
5	Employees State Insurance (ESI)		
6	Charges for Weekly Off	Four Days of (Basic +VDA+ EPF+EDLI+Adm.Chgs. to PF & EDLI +ESI)	
7	Any other Charges demanded by Bidder (Optional)	-	-
a	-	-	-
b	-	-	-
c	-	-	-

8	Sub Total (Sum of Sr.1 to 7)	-	-
9	Service Charge as a % of Sr.8 above (to be decided by the bidder)		
10	Total Cost per Head in (Sr No 8 + Sr No 9)	-	-
11	GST	Extra as applicable	

-

-

While filling price bid kindly consider the following points: -

i) Price Bid, strictly as per above format be filled and uploaded on GeM portal. The same price must be filled on GeM portal for display & L1 determination. Price bid will be rejected if any difference observed in displayed price on GeM & uploaded price bid.

ii) The charges mentioned from SI No. 1 to 4 are mandatory and as per prevalent acts and rules. SI 5 is mandatory only if applicable as per prevalent acts and rules. Not quoting any amount in these serials or quoting below the statutory minimum will render the submitted Price bid null and void.

iii) The total cost at Sr No 10 (Sum of Sr. No. 8 + Sum of Sr. No. 9) will be considered for deciding L1.

iv) The Basic & VDA (Sr. No. 1) should not be quoted less than the minimum wages fixed and revised from time to time, by the Ministry of Labor and Employment, Government of India for employment of Watch and ward staff. Where the Central and state Governments have fixed different rates of minimum wages, the rates whichever is higher will be applicable. The minimum rates of wages also include the wages for the weekly day of rest as per Govt. guidelines.

v) Employer's contribution of EPF shall be paid by the Bank as per rules.

vi) ESI only where applicable will be as per **applicable rates** will be calculated based on SI. No. 1 (Basic + VDA).

vii) GST on Total cost per head shall be paid extra as per extant Rules.

11. For further clarifications if any, you may contact the following email / address

rso.goa@unionbankofindia.bank.in

Address for Communication

-

The Regional Head

Regional Office, Goa

2nd Floor, LIC Building, EDC Complex,

Panjim, Goa :403001

Sign:

(Letter to the bank on the Supplier's letterhead)

-
-

To

The Regional Head
Regional Office, Goa
2nd Floor, LIC Building, EDC Complex,
Panjim, Goa :403001

Dear Sir,

Sub: Submission of Bid for deployment of Security Guards

With reference to your tender notice published on GEM Portal and having examined & understood the instructions, terms and conditions forming part of the tender document, we hereby submit our offer for providing Security Guards (Unarmed) Services as detailed in your above referred tender document.

1. I / We confirm that we have not been disqualified by any PSUs/PSB for deployment of Guards.
2. I / We further confirm that the offer is in conformity with the terms and conditions as mentioned in the tender document.
3. We also confirm that the offer shall remain valid for Three months from the last date for submission of the offer.
4. I / We hereby confirm that we have read the terms and conditions given in this tender document and agree to them.
5. I / We understand that the Bank is not bound to accept the offer either in part or in full and that the Bank has the right to reject the offer in full or in part without assigning any reason whatsoever.
6. I / We enclose herewith a proof of EMD (if applicable) for Rs. _____ only), details of the same are, as under:
Demand Draft/BG/Online Transaction UTR :
Date of DD/BG/Online Transaction :
Name of Issuing/paying Bank :
7. I / We agree that the decision of Union Bank of India in selection of service providers will be final and binding to me / us.
8. All the information furnished by me/us above here is correct to the best of my/our knowledge and belief.
9. I / We agree that I / We have no objection if enquiries are made about the work listed by me / us here in above and/or in the accompanying sheets.
10. I/We (Proprietor/ all partners) are not convicted or facing any criminal proceedings in Court/competent authority under Law of the land.

11. I / We have read the instructions as mentioned in tender document & also on GeM portal and I / We understand that if any false information is detected at a later date, any contract made between ourselves and Union Bank of India on the basis of the information given by me / us can be treated as invalid by the Bank and I / We will be solely responsible for the consequences.

Place.

Date.

Yours faithfully,

Authorized Signatories

(Name & Designation, seal of the firm)

-

(Letter to the bank on the Supplier's letterhead)

-

BIO – DATA OF Private Security Agency / FIRM

1. a) Name of the Firm :

b) Address :

c) Telephone Nos.

Office :

Residence :

Mobile :

Fax :

e-mail :

2. a) Whether Proprietary/Partnership/ Pvt. Ltd. / Public Ltd. :

(Certificate of Registration / Partnership Deed to be enclosed).

b) Name of the Partners, Directors :

i)

ii)

c) Year of establishment

:

3. a) Registration with concerned authorities at **Head Office Location:**

- i) Income Tax (PAN, TAN) No. :
ii) GSTIN no. :
iii) EPF Regn. No. :
iv) ESI Regn. No. :
v) ESI sub code Regn. No. in _____ state :
vi) Shops & Establishments Act. :
vii) Private Security Regulation Act 2005/
PASARA :

Enclose all concerned certificates.

b) Address, Mobile/Tel. Nos. & e-mail ID of Offices/Branches in _____ and Nos. of Employees:

Name, Address & Tel. /Mobile Nos. of Centers	e-mail ID	Nos. of Employees at each Center

4. Names of Bankers with address & telephone numbers:

i)

ii)

5. Furnish copies of **Audited Balance Sheet** and **Profit & Loss A/C** for the last 3 years i.e. F.Y. 2023-24, 2024-25, 2025-26.

6. **Empaneled / Contract** with Govt. / Public Sector Banks / Central/State PSU - (Certificates/Letters of Registration to be enclosed)

Name of the Organization	Year since empaneled / Contracted
--------------------------	-----------------------------------

Name	Designation	Mobile No.	e-mail ID
-	-	-	-

13. **Turnover in last 3 years (Rs.in lacs):**

Sr. No.	Year	Turnover	GST Paid
1			
2			
3			

Note: Copies of Tax Returns & Assessment Orders, for each year to be enclosed.

14. Details of Training facility

- i. Address of training facility:
- ii. If tie up arrangement, details of the same:
- iii. Whether facility for firing practice available:

NOTE:

- i. **Without copies** of Documents, Certificates of Registration, Performance Certificates, Work-Orders, Details, Credentials, Supporting Documents, etc., duly stamped and signed, your **application is liable to be rejected without assigning any reason.**
- ii. Details to be filled up in all columns.
- iii. Attach additional sheet wherever required.

Affidavit (to be submitted on non-judicial stamp paper (of value as per Government norms) and should be duly signed by the Director/s /all Partners/ Proprietor)

I (Name of Director/Partners/ **P**
roprietor), s/o , Resident of ...
.....
.....
.....(Permanent Address) is the Owner/Partner/Director of Private Security A
gency M/S.....

The Firm/Company is registered under Private Security Agencies (Regulation) Act 2005 under state.....
..... and the license is valid in area.....
..... till date.....
..... (Copy of PSARA license attached). The firm/Company **is in/Not in** (tick whichever is applicabl
e) possession of a valid Labour License for provision of watch and ward Casual/Contract Labour from the
office of the concerned Labour department in accordance with the Government orders on the subject.

**On behalf of (Name of service provider) M/s , I undert
ake the following: -**

1. That the payments will be made to all the guards deployed at the Branches of Union Bank of India as per minimum wages as applicable to the area and as revised from time to time by the Labour depart ment, and as per minimum wages Act 1948.
2. That Employee's provident fund (EMPLOYER AS WELL AS EMPLOYEE contribution) will be deposited to the concerned authorities as per employees' provident and miscellaneous provision act 1952 in respec t of our guards deployed at the branches of Union Bank of India.
3. That ESI contribution, if applicable (on the BASIC+VDA+ALLOWANCES) will be deposited to the conce rned authorities as per employees' State insurance act 1948 in respect of our guards deployed at the branches of Union Bank of India.
4. That the bonus will be paid to all our guards as per bonus act 1965 in respect of guards deployed at t he branches of Union Bank of India.
5. That the gratuity will be paid to the security guards deployed at the branches of Union Bank of India a s and when they become eligible for such payment under the relevant law.
6. That all the guidelines will be followed as stipulated from time to time by Ministry of Labour and Empl oyment.
7. That the firm will be solely responsible for any Noncompliance to Minimum wages Act 1948 and other Labour laws and rules applicable in the state of Goa.
8. That the firm will be solely responsible for any dispute arising out of the appointment/termination of s ervices of the armed guards deployed in the branches of our bank.

**Signature of Director/Partners/Proprietor
With name and Seal**

**Date:
Place:**

REFERENCE SITE DETAILS

Name of the Client	-
Address of Office from where feedback is to be sought.	-
Name, designation of contact person with telephone No. and e-mail id	Name: Designation: Contact No.: E-mail id:
No. of Security Guards deployed in last 3 years (Ref. No., date of order and quantity)	-

Reference site details of THREE clients be given in above mentioned format for which additional sheet may be used.

Note:-

Please provide all data as mentioned above, including contact details. Email id should be from firm's domain only. Emails from gmail, rediffmail and other similar domains will not be accepted under any circumstances.

AUTHORISED SIGNATORY

FORMAT FOR AGREEMENT

PROVIDING/OBTAINING SECURITY GUARD (UN ARMED) SERVICES

This Agreement is entered at _____ (Place) on the ____ day of _____
_____ between Union Bank of India, _____ (Branch/Office) _____ at _____
_____ (Address) represented by its attorney Shri _____
_____ hereinafter referred to as the First Party

AND

The Private Security Agency(PSA) M/s. _____ represented by its _____
_____ (designation), Mr./Mrs./Ms. _____ (name) and having its office at _____
_____ (address) hereinafter referred to as the PSA which expression shall wherever the

context so admits, means and includes his legal representatives, successors & assignees as the Second Party.

Whereas the First Party requires the services of a Second Party for safeguarding its properties and assets.

Whereas the PSA, providing security guards(Unarmed) services has agreed to provide Security Guards (Unarmed) (Strike out whichever is not applicable), hereinafter referred to as "PSA's Employees" to the First Party as per the First Party's requirements and terms & conditions of the RFP.

Whereas the PSA and the First Party have agreed to enter into a service contract for a period of _____ months w.e.f. _____ till _____ which shall be deemed to be automatically terminated thereafter unless renewed by the First party for the purpose of obtaining security guards services on the terms and conditions as mentioned hereunder.

Now therefore this agreement witnesseth as under:

1. The PSA declares that the PSA is in possession of the valid licence issued under Section 7 of the Private Security Agencies (Regulation) Act 2005 and the PSA further undertakes that the licence will be renewed from time to time and will be valid during the entire period of the Agreement, failing which this agreement shall stand automatically cancelled and the First Party shall not make any payment.

2. PSA shall ensure that ____ No. of Armed Guards/Security Guards possessing the required skill and training shall be deployed at the branch/office/ATM (Strike out whichever is not applicable). PSA's Employees shall not be more than 55 years of age at the time of first deployment.

3. The PSA hereby undertakes to abide by the requirements of eligibility criteria and physical standards for the PSA's employees and their training as prescribed in the Private Security Agencies (Regulation) Act 2005, the Rules framed there under and the amendments there to.

4. The PSA shall ensure that the PSA and their employees deployed with the first party shall comply with all obligations, conditions and restrictions regarding uniform, photo identity card, etc., stipulated in the Private Security Agencies (Regulation) Act 2005 and Rules framed there under.

5. If the State Law requires the registration of the PSA with the Welfare Board of Security Guards or any such other Board constituted under the State law, completion of such registration shall be ensured by the PSA before deploying their employees with the first party.

6. The PSA agrees that the duty of the deployed security guard (Unarmed) is to keep a watch over persons visiting the branch/office or ATM for the purpose of safety & security and guard against infiltration and against removal of bank's property by any unauthorized person AND/OR to watch and guard as above the movement of cash from one place to another whether inside or outside the Bank.

7. The PSA shall ensure that the PSA's Employees shall be conversant with the use of Fire Extinguishers and shall take necessary action in case of activation of Fire Alarm System or in case of a fire in the branch/office.

8. PSA shall provide the names of PSA's Employees to the branch/office before their deployment. The PSA shall furnish the names, permanent & local addresses of the PSA's Employees deployed at First Party's premises from time to time along with their latest photographs, thumb impression, signatures & Aadhaar Identify Proofs.

9. The PSA shall ensure that the PSA's Employees function under general directions of Branch Manager / Authorised Official and perform duty according to the duties given in the tender document to this Agreement. The PSA shall also ensure that the PSA's Employees deployed at branch/office/ATM have read & understood their duties.

10. The PSA will provide PSA's Employees with uniform (Summer/Winter), caps, raincoats, torches and other accessories (Photo I-Card, name Tab, baton, whistle etc) initially and replace the same periodically as and when required. At no point of time the uniform or its liveries should be faded/untidy/torn.

11. Before deployment of their employees, the PSA shall arrange for verification of antecedents of all the PSA's Employees by the police and such Police verification Certificates shall be submitted to the First Party before deployment of Security Guards or their subsequent relievers.

12. PSA's Employees shall be medically fit, mentally sound and possess good physique and not be suffering from any contagious / major diseases. Wherever required by the First Party, the PSA will provide literate PSA's Employees to perform the assigned duty efficiently.

13. The PSA will change the PSA's Employee immediately on instructions from the First Party if the performance/behavior of that particular PSA's Employee is not acceptable or if found physically/medically unfit and the decision of the First Party will be final in this regard.

14. The PSA shall ensure that the PSA's Employees shall not accept any eatables, tea, coffee, tobacco etc., from strangers. The PSA's Employees shall not consume tobacco, alcohol or other intoxicants or be found in an inebriated state or smoking during the duty hours.

15. A PSA shall ensure that no familiarity develops between the PSA's Employees and the First Party staff. Further, the PSA shall ensure that the PSA's Employees do not indulge in any activities including money transactions, which may tarnish the image of the First Party.

16. A Security Supervisor will be detailed by the PSA. Such security supervisor shall report to the concerned branch/officer in-charge/official at least once a week for the purpose of briefing /debriefing. He must carry out checking of guards wherever deployed for alertness on regular basis as instructed by Branch/Office. First party will not be liable for any separate payments for this arrangement and the cost of such supervisory arrangement shall be borne entirely by the PSA at its own end.

17. The PSA shall ensure that at no point of time during the prescribed duty hours, the PSA's Employee will be on leave or absent from his place of duty without a reliever and that they shall remain alert during their working hours to prevent theft/pilferage and any other untoward incidents.

18. PSA shall maintain duty register for each PSA's Employees and get the register checked by the Bank's branch/office daily, along with timings. In case a PSA's Employee is found absent from the place of his duty, the pro-rata payment for the days of absence will be deducted from the payment due to the PSA.

19. The PSA shall maintain up to-date record of PSA's Employees as per the Shops & Establishment Act and will discharge all obligations under various Labour Laws viz. EPF Act, ESI Act, Gratuity Act, Bonus Act, Workmen's Compensation Act, Contract Labour (Regulation & Abolition Act), etc or under any other State/Union Legislation in respect of PSA's Employees and shall produce these records for verification as when demanded by the First Party.

20. The PSA shall be responsible for all acts of Commission and/or Omissions by its employees leading to loss and/or damage to First Party's employees and/or third Parties and shall meet all liabilities arising out of such Omissions and/or Commissions.

21. PSA shall alone plan, relieve, decide and be responsible for the leave or absence of the PSA's Employees on any grounds and First party shall not in any way be responsible for sanction of leave, etc. to the PSA's Employees.

22. PSA shall maintain proper records /details of the PSA's Employees deployed in the branch/office/ATM of First Party. It shall submit monthly bills to the branch/office by 5th of each month giving details of the PSA's Employees deployed and the payment claimed for each of them. All payments under this agreement shall be made to the PSA by the Bank's branch/office, where the PSA's Employees are deployed on a monthly basis by a crossed cheque/online credit in favour of PSA within four working days of receipt of the relevant bill from the PSA. However, in case of any discrepancy in the bill detected by the First Party, the payment will be released to the PSA within four working days from the date of resolving the discrepancy by the PSA.

23. PSA shall be fully and absolutely responsible for the payment of salary and other statutory dues for/to PSA's Employees like salary/wages, bonus, arrears, overtime, EPF & ESI contributions employment/terminal benefit, compensation or other claims of whatsoever nature to PSA's Employees and First party will not undertake any liability in relation to such matters.

24. The PSA's Employees shall not claim any employment relationship with First party under any circumstances. The PSA shall obtain written undertaking from each of the PSA's employees deployed with the First Party that he is a permanent employee of the PSA and the written undertaking in original shall be given to the First Party's Office, where he is deployed.

25. PSA hereby undertakes to ensure payment of wages to its PSA's Employees in compliance with Minimum Wages Act and other relevant statutes in force and modified/amended or revised from time to time as per enactments of Central/State Governments.

26. The PSA hereby undertakes further that additional/excess payment over the contracted amount, which may arise due to extraneous reasons during the currency of this agreement, shall be borne by the PSA alone and the First Party shall not be liable to pay any excess amount.

27. The PSA shall pay the monthly wages to PSA's Employees deployed with the First Party by crediting to the Savings Bank Account of the PSA's Employees with any bank.

28. PSA shall submit printed receipts for all the payments received from First Party. The PSA shall also furnish the proof of having paid the wages to the PSA's Employees engaged by them within one week of the disbursement of the wages to them and proof of having paid the statutory dues to the concerned authorities on a monthly basis. Non-payment of monthly wages by the PSA to the PSA's employee deployed with First Party will make this contract null and void and will result in termination of the deployment of PSA's employees with the First Party with immediate effect and the First Party will not be required to make any payment to the PSA thereafter.

29. First Party shall not make any direct payment of whatsoever nature to the PSA's Employees. All payment payable by First Party in connection with or arising out of this agreement shall be made only to PSA and not to the PSA's Employees.

30. PSA shall also ensure that the PSA's Employees do have their own arrangements for their food, beverages and refreshments.

31. In case of any injury/death of any staff member of First Party or a public member because of firing of weapon of the PSA's Employees for any reason, PSA shall be liable to pay compensation as deemed necessary and become payable to the injured/deceased or their legal claimants. All legal proceedings and expenses towards such incidents/accidents will be borne by the PSA without involving the first party at any stage.

32. In case of any mishap of whatsoever nature (minor / major / fatal including death during the course of their duty) sustained by PSA's Employees, the responsibility for meeting the medical/hospitalization expenses or of granting compensation, if any, on that count will be that of the PSA and not of the First Party. If for any reason, compensations, costs etc., are paid by the First Party, the same shall be reimbursed by the PSA to First Party without any demur, including interest at ruling rate till settlement and such settlement shall be made by the PSA within one month from the date of Demand by the First Party and upon failure of the PSA to do so, the First Party shall have the right to adjust the monthly bills payable to the PSA towards the amounts payable by the PSA till the entire dues are paid/settled off.

33. In the event of theft, pilferage, damage to property of the First Party or any other loss, the First Party shall report the matter to the local police first. The PSA agrees that in case of any loss of cash/materials/other properties of the bank, which may arise directly or indirectly due to absence or dereliction of duty or inattentiveness or negligence or collusion of the PSA's employee, such loss will be made good by the PSA and all liabilities arising out of such incidents will be fully met by the PSA. If the inquiry reports of the First Party and the PSA are conflicting on this point, it is agreed between the parties that the First Party's report shall prevail and be final. Such quantum of loss assessed and payable by the PSA shall be paid to First Party within a month of demand and upon failure of the PSA to do so, the First Party, without prejudice to other recovery measures either through Court of Law or otherwise, shall have the right to invoke the Bank Guarantee in favour of the First Party submitted by the PSA or to adjust the monthly bills payable by the First Party to the PSA towards the amounts payable by the PSA till the entire dues are paid/settled off.

34. Neither the PSA nor any of the PSA's Employees will have any claim against the First Party for any liability arising out of any commission / omissions caused by the PSA's Employees while on duty.

35. The PSA's Employees deployed for the security of the branch/office/ATM as per terms of this Agreement shall always be treated as employees of the PSA only and will not have any right to seek employment in the services of the First Party. There shall be no relationship whatsoever between the First Party and the PSA's Employees. PSA shall also make it clear to PSA's Employees that they shall not, under any circumstances, claim any right of employment from First Party and the PSA shall continue to be their employer.

36. In return for fixed sum/rates, the PSA shall at its own risk & cost provide services of PSA's Employees

as per the requirement of the First Party purely on Contractual basis.

37. PSA undertakes to submit a copy of licence from the Ministry of Labour, Govt. of India, or exemption certificate from the State Government, for providing security guard services in offices/ATMs of First Party before deploying their employees with the First Party.

38. PSA states and admits explicitly that the work assigned by First Party to it is not perennial in nature and the First Party has the right to terminate the assigned work, if in its assessment and opinion, the need for the assigned work ceases to exist. The assignment/engagement is well defined, quantified, time-bound and specified by the First Party to PSA and, in turn, by the PSA to PSA's Employees.

39. PSA shall ensure to submit annual returns to various Authorities and also ensure compliance of all the applicable laws, rules and regulations for which PSA shall be solely responsible.

40. PSA hereby agrees to indemnify and keep First Party indemnified against any loss, damage, compensation, cost etc., that First Party might be required to incur/pay arising out of litigation, non-compliance or breach of statute/s, regulations etc., by the PSA or even otherwise.

41. The First Party as well as the Reserve Bank of India shall have the right to access all books, records and information relevant to the PSA's employees deployed with the First Party and shall have the right to cause an inspection on the PSA's office & training infrastructure and audit the books & records as relevant to the services provided to the First Party.

42. The PSA shall preserve all the data and documents pertaining to their employees deployed with the First Party for not less than three years and shall make them available to the First Party, if and when demanded.

43. The PSA shall not sub-contract the armed guards' services provided to the First Party to any third party without the prior approval of the First party.

44. This Agreement can be terminated by either Party at one month's notice in writing. However, if the First Party terminates this Agreement/Contract due to the PSA violating any of the terms of this Agreement or due to non-performance of the terms of this Agreement or due to any negligence on the part of the PSA or PSA's Employees, the First Party shall not be required to give any notice and the Agreement shall stand terminated on the date following the day on which the PSA receives, from the First Party, the intimation about such violation or non-performance or negligence.

45. In continuation of the Clause 44 above, if any of the terms / clauses of this agreement remains violated or non-rectified or not adhered to by the PSA for more than one month even after due notice of such violation or non-adherence, the PSA agrees that apart from terminating the Contract, the First Party will have the right to blacklist the PSA for the next five years and to invoke the Performance Bank Guarantee and forfeit the entire amount covered by the Performance Bank Guarantee as penalty for non-adherence to this agreement / contract.

46. In consideration of the services as stated herein above, First Party agrees to make payment @ of Rs. _____ for each Armed Guard / Rs. _____ for each Security Guard (excluding taxes) and after deducting TDS (if applicable) to the PSA for each completed month of services or pro-rata thereof.

We the above noted parties have signed this deed of agreement after having understood the contents of this deed on the date and place mentioned above.

(Signature)

(Signature)

Authorised Signatory

Authorised Signatory

For BANK (with seal)

For Private Security Agency (with seal)

-

-

(First Party)

(Second Party)

-

Duties & General Conduct of Unarmed Guards:

1. Unarmed Guard shall perform duty for eight hours on all working days and shall report to the Site 15-30 minutes prior to opening of the branch/shift hours.
2. On start/completion of duty at the site, the Unarmed Guard shall inform the Bank's Branch Manager/Authorized official for taking over/completing the duty and about the condition of the site.
3. Unarmed Guard shall perform duty only in prescribed uniform provided to him by his employer i.e. PSA.
4. Unarmed Guard shall check and inform of any damage, accident, pilferages, incident, fire/arson, etc., as also, any defect/malfunctioning of ATM, electrical equipment's, lights, AC, etc. to Branch Manager/Authorized Bank official.
5. Unarmed Guard while performing duty at the ATM /office shall keep watch on persons visiting the branch/office and inform Branch Manager/Authorized Officer about any suspicious movement/activity.
6. Unarmed Guard is to keep a watch over persons visiting the ATM/office for the purpose of safety & security and guard against infiltration and against removal of bank's property by any unauthorized person AND/OR to watch and guard as above the movement of cash from one place to another whether inside or outside the Bank.
7. At office site, Unarmed Guard on duty should allow access to ATM card holders only and permit one ATM card holder inside the ATM at one time.
8. Unarmed Guard should ensure that the ATM Entrance/office Main Gate is not obscured/blocked by parking

ng vehicles etc. and that parking of Vehicles inside the premises is systematic and no vehicle is parked at unwanted areas/places.

9. In case anybody leaves behind any bag, suspicious item, etc., Unarmed Guard, on duty, should immediately inform Branch Manager, Security Officer or Police.
10. Unarmed Guard should interact with customers/office visitors/staff with respect and politeness.
11. Unarmed Guard should not leave the place of duty unless properly relieved during duty hours and after duty hours (at offices).
12. Unarmed Guard shall check the Electronic Alarm System, CCTV and Fire Alarm System fitted at the ATM site daily and if these systems are found defective at any point of time, he shall report the matter to Branch Manager/Authorized official/AMC Firm for rectification of defects.
13. Unarmed Guard shall be conversant with the use of Fire Extinguishers and shall take necessary action in case of activation of Fire Alarm System or in case of a fire in the ATM/office.
14. Unarmed Guard shall escort cash remittances, as and when required by the branch.
15. Unarmed Guard shall perform security related duties only and shall not get involved in any other work or banking related operations or any other activity at the Branch/Office.
16. At Office location Unarmed Guard shall ensure that there is no misuse of property/equipment by anyone in the premises specially, canteen staff, workers of agencies, etc. and inform authorized official.
17. At Office location Unarmed Guard shall ensure that only desired electrical lights in the periphery and inside are kept on during nighttime and put off during daytime.
18. Unarmed Guard shall not accept any eatables, tea, coffee, tobacco etc., from strangers. The PSA's Employees shall not take any alcohol or intoxicants or be found in an inebriated state or smoke during the duty hours.
19. Unarmed guard shall not use his firearm on any occasion except as his right to his private defence as provided u/s 34 to 44 of the Bhartiya Nyaya Sanhita 2023 (where applicable).

Format for Performance Bank Guarantee

Guarantee No.: _____

Date: _____

In consideration of the Union Bank of India, Regional Office, having its Office at
..... (Hereinafter referred to as the 'First Party' which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators and assigns) having selected and intimated M/s.

..... (Name of PSA) having its registered office at
Name & Address of Vendors H.O.) (Hereinafter referred to as the "Second Party" which expression shall unless repugnant to the context of meaning thereof, include its successors, administrators, executors and assigns), by means of letter No. dated for providing the services of Security Guards and Armed Guards at its ATMs / Branches, the Second Party has agreed to furnish a Bank Guarantee valued at Rs. (Rupees only) to keep the "First Party" indemnified from time to time for any breach of terms of the "Agreement" the Second Party is to enter with any of the branches/offices of the First Party.

We (Name and Address of Bank) (hereinafter referred to as the 'Bank' which expression shall, unless repugnant to the context or meaning thereof, include the successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the "First Party", on demand any and all moneys payable by the "Second Party" to the extent of Rs. (Rupees only) as aforesaid at any time up to (Date), without any demur, reservation, contest, recourse or protest and without any reference to the "Second Party". Any such demand made by the "First Party" on the 'Bank' shall be conclusive and binding notwithstanding any difference between the "First Party" and "Second Party" or any dispute pending before any court, tribunal or any authority. The Bank undertakes not to revoke this guarantee during its currency without previous consent of the "First Party" and further agrees that the guarantee herein contained shall continue to be enforceable till the "First Party" discharges this guarantee. The Bank shall not be released of its obligations under these presents by any exercise by the "First Party" or by any other matter or thing whatsoever which under law would, but for this provision, have the effect of relieving the Bank.

We the bank further agree that the "First Party" shall have full liberty, without our consent and without affecting in any manner our obligation hereunder to vary any of the terms and conditions of the Agreement entered into between the "First Party" and the "Second Party" for providing security guards for the "First Party" or to extend time of performance of its obligation by the "Second Party" from time to time or to postpone/forbear for any time or from time to time any of the powers exercisable by the "First Party" against the "Second Party" and to forbear or enforce any of the terms and conditions relating to the said Agreement and shall not be relieved from our liability by reason of any such variation or extension being granted to the "Second Party" or for any forbearance, act or omission on the part of "First Party" or any indulgence by "First Party" to the "Second Party" or by any such matter or thing whatsoever which under the law relating to sureties would but for this provisions have effect of so relieving us.

The Bank also agrees that the "First Party" at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the "Second Party" and notwithstanding

withstanding any security or other guarantee that the "First Party" may have in relation to the "Second Party" liabilities.

The Bank hereby expressly agrees that it shall not require any proof in addition to the written demand from the "First Party", made in any format, raised at the abovementioned address of the Bank, in order to make the said payment to the "First Party".

The Bank hereby agrees and acknowledges that the "First Party" shall have a right to invoke this Guarantee either in part or in full, as it may deem fit.

The Bank acknowledges that this guarantee is not personal to the "First Party" and may be assigned, in whole or in part, (whether absolutely or by way of security) by the "First Party" to any entity to whom it is entitled to assign its rights and obligations under the Guarantee.

This Guarantee shall not be affected in any manner by reason of merger, amalgamation, restructuring, liquidation, winding up, dissolution or any other change in the constitution of the Guarantor Bank.

Notwithstanding anything contained herein:

- a) Our liability under this Bank Guarantee shall not exceed Rs. _____ (Rupees _____ only)
- b) This Bank guarantee shall be valid up from _____ (Date) to _____ (Date).
- c) We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if the First Party serves upon us a written claim or demand on or before _____ (Date).
- d) At the end of the claim period that is on or after _____ (Date), all the right of "First Party" under this guarantee shall stand extinguished and we shall be discharged from all liabilities under this guarantee.

Witness

Dated this Day of _____ (month, year) at (Place).

Signature.....

Signature.....

Name

Name.....

Official Address

Designation with Bank stamp

11. Buyer Added Bid Specific SLA

File Attachment [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The

Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---